

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 16

Honorable Vincent I. Parrett, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2270

August 19, 2026

9:00 and 9:01 A.M.

Unauthorized Recording of Court Proceedings will be Punished

ORAL ARGUMENT

If you are contesting the tentative ruling then by 4 PM today you must notify:

- (1) The Court by calling **(408) 808-6856**, and
- (2) The other side by phone or email that you will appear at the hearing to contest the tentative.

If you fail to notify the court and opposing side by 4 PM then no oral argument will be heard and the tentative ruling becomes the final ruling. (C.R.C. 3.1308(a)(1) & Local Rule 8.D.)

APPEARANCES

The Court encourages in-person appearances for all matters.

The Court discourages remote appearances.

The Court forbids phone-only appearances.

If, despite the above clear guidance, you still elect to appear remotely in Department 16 then you must appear by video using our Court's Unicorn Digital Courtroom ("UDC") system. If for whatever reason you do not like using UDC, *then come to D16 in person.*

To use UDC, click or copy and paste this link into your internet browser & scroll to Department 16: https://www.scscourt.org/general_info/ra_teams/video_hearings_teams.shtml
When using UDC you must *separately register for each case* in which you appear remotely. If you find UDC too cumbersome, *then come to D16 in person.*

Proposed Orders filed by counsel after the hearing must include the Judicial Council Form EFS-020 Proposed Order Cover Sheet.

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
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9:01 1	21CV389252	<i>Santa Clara County Federal Credit Union</i> v. <i>Randy P. Polanco, et al.</i>	Hearing on Judgment-Debtor Randy P. Polanco’s Claim of Exemption As of June 29, 2026, as set forth in the Writ of Execution filed on that date in this case, Judgment Debtor Randy P. Polanco (“Polanco”) owed \$16,854.07 on a Judgment and accrued interest thereon (the “Judgment Debt”) owed to Judgment Creditor Santa Clara County Federal Credit Union (“SCCFCU”). In his Claim of Exemption filed on July 13, 2026, Polanco now seeks a complete exemption from wage garnishment to satisfy the amounts he owes on the Judgment Debt. But as SCCFCU points out in its Opposition to Polanco’s Claim of Exemption filed on July 14, 2026, Polanco’s Claim of Exemption fails because: (1) Polanco has provided no evidence that his adult child is unable to self-support; (2) SCCFCU as the Judgment Creditor has priority over the non-essential expenditures claimed by Polanco (e.g., “entertainment”), and (3) Polanco has provided no evidence (e.g., no documents) establishing the remaining claimed expenditures. Moreover, under Code of Civil Procedure Section 703.530, Polanco as the Judgment Debtor has the burden to establish that the levied funds are exempt, e.g., by demonstrating that the funds at issue are reasonably necessary for his support. But Polanco has failed to carry that burden. Accordingly, Judgment Debtor Randy P. Polanco’s Claim of Exemption is DENIED. Judgment Creditor SCCFCU is to prepare and file the formal order after this hearing. SO ORDERED.
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9:01 2	23CV414661	<i>Sam Anderson, et al.</i> v. <i>Erich Nunzio, et al.</i>	Order on Motion by Plaintiff's counsel Anthony C. Chiosso of Chiosso Law Offices to be Relieved as Counsel for Plaintiffs Sam Anderson and Wafaa Habeeb Plaintiff's counsel Anthony C. Chiosso of Chiosso Law Offices moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiffs Sam Anderson and Wafaa Habeeb. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Plaintiff's and filed with this Motion. SO ORDERED.
9:01 3	23CV414661	<i>Sam Anderson, et al.</i> v. <i>Erich Nunzio, et al.</i>	Order on Motion by Plaintiff's counsel Thomas W.J. Purtell of Law Offices of Thomas W.J. Purtell to be Relieved as Counsel for Plaintiffs Sam Anderson and Wafaa Habeeb Plaintiff's counsel Thomas W.J. Purtell of Law Offices of Thomas W.J. Purtell moves under Code of Civil Procedure Section 284(2) for an Order to be Relieved as Counsel for Plaintiffs Sam Anderson and Wafaa Habeeb. As the Motion complies with applicable law and is well supported and duly served, the Motion is hereby GRANTED. The Court will sign and file the Proposed Order that has already been prepared by Plaintiff's and filed with this Motion. SO ORDERED.

9:01 4	24CV451665	<i>Mamoun Abu-Samaha v. International Technological University, et al.</i>	Hearing: Order of Examination On February 13, 2026, the Court Ordered Defendant Judgment Debtor Yau-Gene Chan, on behalf of himself and on behalf of International Technological University, to appear personally in Department 16 to give information regarding a money judgment against him and International Technological University on August 19, 2026 at 9:01 AM in Department 16 (the “Order of Examination”). Accordingly, Judgment Debtor Yau-Gene Chan, on behalf of himself and on behalf of International Technological University, is Ordered to appear in person on August 19, 2026, at 9:01 AM in Department 16 for this Examination. If Judgment Debtor Yau-Gene Chan does not appear as Ordered on August 19, 2026 at 9:01 AM in Department 16 then a Civil Bench Warrant will issue against Yau-Gene Chan with bail set at \$5,000.00. Specifically, if Judgment Debtor Yau-Gene Chan does not appear then Plaintiff Judgment Creditor Mamoun Abu-Samaha (“Plaintiff”) is to prepare and file a Civil Bench Warrant against Yau-Gene Chan with bail set at \$5,000.00 using Form CW-9002 that will be given to Plaintiff by the D16 Courtroom Clerk. SO ORDERED.
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9:01 5	25CV477895	<i>Hakan Bala</i> v. <i>Juan Carlos Castillo Rodriguez,</i> <i>et al.</i>	Hearing: Order of Examination On June 4, 2026, the Court Ordered Defendant Judgment Debtor Juan Carlos Castillo Rodriguez to appear personally in Department 16 to give information regarding a money judgment against him on August 19, 2026 at 9:01 AM in Department 16 (the “Order of Examination”). Accordingly, Judgment Debtor Juan Carlos Castillo Rodriguez is Ordered to appear in person on August 19, 2026 at 9:01 AM in Department 16 for this Examination. If Judgment Debtor Juan Carlos Castillo Rodriguez does not appear as Ordered on August 19, 2026 at 9:01 AM in Department 16 then a Civil Bench Warrant will issue against Juan Carlos Castillo Rodriguez with bail set at \$5,000.00. Specifically, if Judgment Debtor Juan Carlos Castillo Rodriguez does not appear then Assignee of Record of this Judgment Diana C. Guadalupe Chipana dba Wealth Recovery Solutions (“Assignee”) is to prepare and file a Civil Bench Warrant against Juan Carlos Castillo Rodriguez with bail set at \$5,000.00 using Form CW-9002 that will be given to Assignee by the D16 Courtroom Clerk. SO ORDERED.
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9:01 6	24CV448840	<i>Skanska-Shimmick-Herzog</i> <i>v.</i> <i>LAN/T.Y. Lin., et al.</i>	Hearing on Verified Application of Logan S. Brundage to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. The Verified Application of Logan S. Brundage to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Application. SO ORDERED
9:00 <u>1</u>	25CV457216	<i>Jayanthi Rangarajan</i> <i>v.</i> <i>Sutter Law Firm PC, et al.</i>	Order on Defendants' Demurrer to Plaintiff's First Amended Complaint As the parties have advised the Court that this case has settled, this Demurrer is OFF CALENDER. SO ORDERED.
9:00 <u>2</u>	25CV461206	<i>Beverly Ann Land</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Defendant Ford Motor Company's Motion for Judgment on the Pleadings As the moving party Defendant Ford Motor Company on August 12, 2026 withdrew this Motion for Judgment on the Pleadings, this Motion is OFF CALENDER. SO ORDERED.

9:00 3	25CV481480	<i>Melissa Ikeda, et al.</i> v. <i>FCA US LLC, et al.</i>	Order on Defendant's Demurrer to Plaintiff's Complaint & on Defendant's Motion to Strike Punitive Damages and Civil Penalties within Plaintiff's Complaint See Line 3 below for complete tentative ruling on both the Demurrer and the Motion to Strike. After the hearing, the Court will prepare and file one formal Order on both the Demurrer and the Motion to Strike.
9:00 4	25CV481480	<i>Melissa Ikeda, et al.</i> v. <i>FCA US LLC, et al.</i>	Order on Defendant's Motion to Strike Punitive Damages and Civil Penalties within Plaintiff's Complaint See Line 3 below for complete tentative ruling on both the Demurrer and the Motion to Strike. After the hearing, the Court will prepare and file one formal Order on both the Demurrer and the Motion to Strike.
9:00 5	25CV478200	<i>Kamila Kraba</i> v. <i>Armsby Lane Road Association</i>	Order on Demurrer of Plaintiff and Cross-Defendant to the Cross-Complaint See Line 5 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order. Moreover, regardless of whether this tentative ruling is contested or not, counsel for all parties in this case are ORDERED to attend this hearing to discuss a Case-Management related to issues raised in this Demurrer. SO ORDERED.

9:00 6	21CV387694	<i>LVNV Funding LLC</i> <i>v.</i> <i>Teresa L. Pulido, et al.</i>	Order on Defendant's Motion to Vacate the Default and Default Judgment See Line 6 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 7	23CV411306	<i>Gerber J. Flores Marquez</i> <i>v.</i> <i>All Fab Precision Sheetmetal Inc., et al.</i>	Order on Plaintiff's Amended Motion to Compel Defendant Ho Enterprises LLC to Provide Further Responses to Plaintiff's Form Interrogatories, and for Sanctions See Line 7 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 8	22CV404566	<i>Angel Solorio Lomeli</i> <i>v.</i> <i>Angela Yuliana Solorio, et al.</i>	Order on Plaintiff's Motion for Discretionary Relief See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order. As the prevailing party, Defendant is ORDERED to prepare and file and proposed Judgment within 10 days of today. SO ORDERED.

9:00 9	22CV408177	<i>John Roe 1, et al.</i> <i>v.</i> <i>Doe Entity 1, et al.</i>	Order on Plaintiff John Roe 1's Motion to Sever John Roe 4's Claims from John Roe 1's claims, and retain August 24, 2026 Trial Date for John Roe 1 See Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 10	23CV420753	<i>Iretunde Akinsola, et al.</i> <i>v.</i> <i>John Finister, et al.</i>	Order on Defendant and Cross-Complainant Lawrence Wu's Motion for Leave to file a First Amended Cross-Complaint See Line 10 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 11	24CV445335	<i>Luc Rebboah</i> <i>v.</i> <i>Darrell P. Zazueta, et al.</i>	Order on Settling Defendants' Application for Determination of Good Faith Settlement See Line 11 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 12			
9:00 13			
9:00 14			
9:00 15			

Line 1

Case Name: *Jayanthi Rangarajan v. Sutter Law Firm PC, et al.*

Case No.: 25CV457216

See **ORDER** above. (As the parties have advised the Cour that this case has settled, this Demurer is **OFF CALENDAR**).

Line 2

Case Name: *Beverly Ann Land v. Ford Motor Company, et al.*

Case No.: 25CV461206

See **ORDER** above. (As the moving party Defendant Ford Motor Company on August 12, 2026 withdrew this Motion for Judgment on the Pleadings, this Motion is **OFF CALENDER.**)

Line 3

Case Name: *Melissa Ikeda, et al. v. FCA US LLC, et al.*

Case No.: 25CV481480

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant FCA US LLC (“Defendant”) demurs under Code of Civil Procedure Section 430.10(e) & (f) to Plaintiffs’ Complaint on the following grounds:

1. Under Section 430.10(e) because Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is barred by the statute of limitations;
2. Under Section 430.10(f) because Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is too uncertain, vague, and ambiguous to constitute a cause of action against Defendants;
3. Under Section 430.10(e) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact fails to state facts sufficient to constitute a cause of action against Defendants;
4. Under Section 430.10(f) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact is too uncertain, vague, and ambiguous to constitute a cause of action against Defendants;
5. Under Section 430.10(e) because Plaintiff’s Sixth Cause of Action for Fraud and Deceit—Suppression of Fact is barred by the statute of limitations.

Notice of Demurrer (the “Demurrer”) at 1:26-27, 3:5-24 (filed: Jan. 9, 2026).

Defendant also moves under Code of Civil Procedure Section 436 to strike the following portions of Plaintiffs’ Complaint:

1. Page 13, Prayer, Item E “For punitive damages;”
2. Page 13, Prayer, Item F “For a civil penalty in the amount of two times Plaintiffs’ actual damages pursuant to Civil Code Section 1794, subdivision (c) or (e).”

Notice of Motion to Strike (the “Motion to Strike”) at 1:26-2:4 (filed: Jan. 9, 2026).

The Motion to Strike is made on the grounds that Plaintiffs have failed to plead sufficient facts sufficient to establish that Defendants acted with malice, fraud, or oppression, as required under California law to state a claim for punitive damages; and that Plaintiffs have also failed to comply with Code of Civil Procedure 871.24(a) & (h) as required to state a claim for civil penalties under Civil Code section 1794, subdivision (c) or (e). Motion to Strike at 2:5-11.

The Demurrer and Motion to Strike came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

On July 4, 2018, Plaintiffs entered into a warranty contract with FCA for a 2020 Ram 1500, vehicle identification number 1C6SRFHMXLN247405 (“Subject Vehicle”), which was manufactured and distributed by FCA. The contract warranted the Subject Vehicle “bumper-to-bumper,” including but not limited to powertrain, emission, etc. (Complaint ¶¶ 7-8)

Before Plaintiffs’ purchase, FCA knew that vehicles equipped with the same 3.0-liter engine have one or more defects in their Exhaust Gas Recirculation (“EGR”) coolers that can result in thermal fatigue, leading the coolers to crack over time and leak coolant, which can cause combustion within the intake manifold and lead to a vehicle fire and sudden loss of power (“EGR Defect”). FCA acquired this knowledge through various sources of information, including but not limited to pre-production and post-production testing data, consumer complaints, dealership repair orders, and aggregate warranty data. (Complaint ¶¶ 16, 19)

FCA knew about the EGR defect and its safety risks prior to Plaintiffs’ purchase of the subject Vehicle as it issued a recall in October 2019, advising customers that FCA is making every effort to finalize a remedy as quickly as possible and in the interim they should monitor the vehicle’s coolant levels and contact their dealers if the levels were consistently low. FCA later updated the Recall to provide for a part replacement (part number 68483334AA, and later, part number CSNDVB11AB). Had Plaintiffs known the Subject Vehicle and its EGR cooler were defective at the time of sale, they would not have purchased it. (Complaint ¶¶ 20, 27-29, 72)

Plaintiffs have presented the Subject Vehicle to FCA’s authorized repair facilities at least on one occasion. FCA still has not fixed the EGR cooler that causes the symptoms associated with the EGR Defect. (Complaint ¶¶ 30, 63)

Plaintiffs discovered FCA’s wrongful conduct on November 28, 2025, when they requested a buyback and/or restitution of the Subject Vehicle since the Vehicle continued to exhibit symptoms of defects following unsuccessful repair attempts. (Complaint ¶ 40)

Plaintiffs filed this action on December 3, 2025, alleging causes of action for (1) Violation of Civil Code section 1793.2, subdivision (d); (2) Violation of Civil Code section 1793.2, subdivision (b); (3) Violation of Civil Code section 1793.2, subdivision (a)(3); (4) Breach of the Implied Warranty of Merchantability; (5) Negligent repair, and (6) Fraudulent Inducement – Concealment.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).) A demurrer may be used to object to the legal sufficiency of the pleading as whole, or to any cause of action stated therein, on one or more of the grounds enumerated by statute, however, it must dispose of an entire cause of action to be sustained. (C.C.P. §§ 430.10 & 430.50(a); *Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe’s Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Ibid.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Ibid.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Ibid.*)

Under Code. Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

A court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

III. Request for Judicial Notice

FCA requests judicial notice of a partial list of manufacturers that have elected to opt-in to Cal. Code of Civil Procedures § 871.20 et seq, as maintained on the California Department of Consumer Affairs’ government website.

FCA's request for Judicial Notice is **GRANTED** pursuant to Evidence Code section 452(h).

IV. Analysis of the Demurrer

A. Fourth Cause of Action – Breach of the Implied Warranty of Merchantability

1. Statute of Limitation

FCA contends that Plaintiffs' fourth cause of action for breach of the implied warranty of merchantability is time-barred by the four-year statute of limitations since the complaint was filed approximately six years after the vehicle was purchased. (Demurrer at 5:22-28)

California Uniform Commercial Code's (UCC) four-year statute of limitations for breaches of warranty applies to Song-Beverly breach of express warranty claims and breach of implied warranty claims. (Com. Code, section 2725(1), (2); *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215.) "Typically, a breach of the implied warranty of merchantability occurs at the date of sale" and implied warranty claims must be brought within four years of when the breach occurred. (See *Flat v. Ford Motor Co.* (N.D. Cal. 2023) 678 F.Supp.3d 1138, 1141.)

But the Song-Beverly Act provides that when accompanied by an express warranty for future performance spanning one year or longer, the duration of the implied warranty of merchantability may extend to a period of not more than one year after purchase. (Civ. Code, § 1791.1, subd. (c).) This provision has been held to extend to an implied warranty for future performance, such that "the implied warranty of merchantability may be breached by a latent defect undiscoverable at time of sale." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308.) In other words, latent defects which exist in the first year after tender of delivery, even if they do not manifest until after the first year, can be a basis for a breach of implied warranty claim so long as the claim is filed within four years of the date of sale. (*Id.* at 1306-1307, fn. 6.)

Here, Plaintiffs allege that: (1) they entered a warranty contract with FCA on December 31, 2019; (2) the Subject Vehicle was sold with the defective EGR cooler; (3) defects and non-conformities manifested themselves within the applicable express warranty period; (4) the Subject Vehicle continued to exhibit symptoms of defects following FCA's unsuccessful repair attempts; (5) they discovered FCA's wrongful conduct on November 28, 2025; (6) the four-year statute of limitations was tolled due to the delayed discovery rule, the repair rule, and FCA's fraudulent concealment of the defect. (Complaint ¶¶ 7, 12, 15, 40, 41.)

While the Court can infer the Subject Vehicle was sold and/or delivered to Plaintiff on the date they entered into a warranty contract with FCA, the Complaint lacks any factual allegations in this regard. Where Defendant demurs on the affirmative defense that the action is time-barred, the defect must clearly and affirmatively appear on the face

of the complaint and/or matters subject to judicial notice; it is not enough that the Complaint shows that the action may be barred. (See, *Committee for Sound Water & Land Development v. City of Seaside* (2022) 79 Cal.App.5th 389, 400.)

Furthermore, Plaintiffs' allegations create factual questions about when the cause of action accrued and whether earlier discovery of the defect was possible despite reasonable diligence. These are questions that cannot be resolved on demurrer where the allegations, liberally construed, support delayed accrual.

Accordingly, FCA's Demurrer to the Fourth Cause of Action on this ground is **OVERRULED**.

2. Uncertainty

FCA also demurs to the Fourth Cause of action on the grounds that it is uncertain, vague, and ambiguous. (Notice of Demurrer and Demurrer at 3:8-11). But FCA develops no substantive argument on these grounds in its memorandum.

Plaintiffs do allege breach of the implied warranty of merchantability, identify the statutory basis (Civil Code sections 1791.1, 1792, 1794, 1795.5), specify that the Subject Vehicle was sold with latent defects, identify the nature of those defects (EGR defects), and allege that the defect constitutes a breach because the Subject Vehicle does not pass without objection in the trade, is not fit for ordinary purposes, and does not conform to affirmations of fact. (Complaint ¶¶ 7-21, 57-60.) FCA has plainly been able to understand and respond to this claim, as evidenced by its substantive arguments regarding the statute of limitations and the sufficiency of the allegations.

Accordingly FCA's Demurrer to the Fourth Cause of Action on this ground is **OVERRULED**.

B. Sixth Cause of Action for Fraudulent Concealment

The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage. (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348.)

FCA contends Plaintiffs' claim fails because (1) it is barred by the applicable three-year statute of limitation, (2) it is barred by the economic loss rule, and (3) it lacks the necessary factual specificity. (Demurrer at 7:10-14:24)

1. Statute of Limitation

Claims for fraudulent inducement based on concealment are subject to a three-

year statute of limitations. (Code Civ. Proc., § 338(d).) FCA contends Plaintiffs' claim is time-barred because the complaint was filed approximately six years after the Subject Vehicle was purchased on December 31, 2019. (Demurrer at 13:27-14:3)

But a fraud claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." (Code Civ. Proc., § 338, subd.(d).) Plaintiffs allege they did not discover FCA's wrongful conduct until November 28, 2025. (Complaint ¶ 41) As alleged, the complaint is timely since it was filed weeks after the statute accrued on November 28, 2025.

FCA's argument that Plaintiffs must allege facts showing they were not negligent in discovering the defects earlier is misplaced. Plaintiffs need only allege the ultimate facts necessary to the statement of an actionable claim. "It is both improper and insufficient for a plaintiff to simply plead the evidence by which he hopes to prove such ultimate facts." (*Prakashpalan v. Engstrom, Lipscomb & Lack* (2014) 223 Cal. App. 4th 1105, 1120; internal citation omitted.)

Accordingly, FCA's Demurrer to the Sixth Cause of Action on this ground is **OVERRULED.**

2. Requisite Specificity

FCA contends Plaintiffs fail to allege facts showing (1) what the defect was, (2) FCA's duty to disclose, (3) FCA's exclusive knowledge of the defect, and (4) FCA's active concealment of the defect. (Demurrer at 7:10-14:24) The Court is not persuaded. First, Plaintiffs allege that 2020 Ram 1500 vehicles equipped with the 3.0-liter engine have defects in their EGR coolers that result in thermal fatigue, cracking, coolant leaks, combustion, vehicle fire, and sudden loss of power. These allegations sufficiently identify the defect with particularity.

Second, exclusive knowledge does not require that the facts be known or accessible only to FCA. It is sufficient that FCA had superior knowledge of information that was not reasonably discoverable by the Plaintiffs. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40) Plaintiffs allege FCA acquired knowledge through sources such as pre-production and post-production testing data, early consumer complaints made directly to FCA and its dealer network, aggregate warranty data, and warranty repair data. These are sources to which consumers would not have access. Plaintiffs further allege FCA knew of the defect prior to Plaintiffs' purchase – as shown by FCA's Recall 19V-757 issued in October 2019 - and that Plaintiffs could not reasonably have been expected to learn or discover the EGR defect until well after their purchase. (Complaint ¶¶ 19, 22-29) These allegations sufficiently show FCA's superior knowledge of the defect prior to Plaintiffs' purchase of the Subject Vehicle.

Third, Plaintiffs allege FCA (1) concealed the defect from its sales representatives and from Plaintiffs at the time of sale and thereafter, (2) omitted mention of the defect, (3) was inundated with complaints but either informed consumers their vehicles were functioning properly or conducted repairs that merely masked the defect, (4) issued a

recall in October 2019, approximately two months prior to Plaintiff's purchase of the Subject Vehicle, acknowledging the defect but told consumers no remedy was available and instructed them to monitor coolant levels, an instruction that could exacerbate the danger. (Complaint ¶¶ 20, 26-29) These allegations describe affirmative acts beyond mere nondisclosure.

Fourth, "[a] duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as the plaintiff's fiduciary or is in some other confidential relationship with the plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to the defendant, and the defendant knows those facts are not known or reasonably discoverable by the plaintiff (*i.e.*, exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (*i.e.* partial concealment); or (5) the defendant actively conceals discovery of material fact from the plaintiff (*i.e.*, active concealment). Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as between seller and buyer, ..., or parties entering into any kind of contractual agreement. All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances. Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large." (*Rattagan v. Uber Techs., Inc.* (2024) 17 Cal. 5th 1, 40, internal citations and quotes are omitted.) All the same, "[a] relationship between the parties is present if there is some sort of transaction between the parties." (*Hoffman v. 162 N. Wolfe LLC*, (2014) 228 Cal. App. 4th 1178, 1187, internal citation and quotes omitted)

Here, Plaintiffs allege they entered into an express warranty agreement with FCA on December 31, 2019. (Complaint ¶ 7) The Court is obligated to construe all inferences in the complaint in the light most favorable to Plaintiffs. As such, Plaintiffs have sufficiently alleged a direct transactional relationship with FCA that gives rise to a duty to disclose.

Accordingly, FCA's Demurrer to the Sixth Cause of Action on this ground is **OVERRULED.**

3. Economic Loss Rule

Under the economic loss rule, there is generally no recovery in tort for purely economic losses arising from a contractual relationship, but there are exceptions for intentional tort claims like fraud. (*See Rattagan, supra*, 17 Cal.5th at 38.) For purposes of this exception, the California Supreme Court has stated that fraudulent concealment claims are treated no differently than affirmative fraudulent conduct, so long as a plaintiff can establish all the required elements of the cause of action independently of the parties' contractual rights and obligations and can demonstrate an exposure to risks of harm beyond those that would be reasonably expected as the result of a contractual breach. (*Id.* at 38-39.) "If the alleged breach is based on a failure to perform as the contract provides, and the parties reasonably anticipated and allocated the risks associated with the breach, the cause of action will generally sound only in contract because a breach

deprives an injured party of a benefit it bargained for. However, if the contract reveals the consequences were not reasonably contemplated when the contract was entered and the duty to avoid causing such harm has an independent statutory or public policy basis, exclusive of the contract, tort liability may lie.” (*Id.* at 27.)

Here, the Court finds that a party entering a warranty contract has not bargained with the expectation that the manufacturer has concealed known material defects. As noted above, Plaintiffs have alleged that they would not have purchased the Subject Vehicle had they known about the defects. (Complaint ¶ 72) The Court concludes that buying a vehicle with a known material defect risks harm beyond what would reasonably be expected from a manufacturer’s failure to fulfill a warranty obligation once a problem arises with the vehicle. Therefore, the Court finds that Plaintiffs’ claim is not barred by the economic loss rule since their loss arises from FCA’s concealment of material facts to induce their purchase and not from their failure to conduct repairs in compliance with the warranty contract.

Additionally, California has a strong policy interest, independent from the warranty itself, in ensuring automotive manufacturers do not withhold safety-related information from consumers. (*Rattagan, supra*, 17 Cal.5th at 44; [“California public policy strongly supports imposing a tort duty on contractual parties to refrain from fraudulent deceit and favors enforcement of valid fraud actions, which the Legislature has facilitated through the enactment of the general fraud statute.”].)

Accordingly, FCA’s Demurrer to the Sixth Cause of Action on this ground is **OVERRULED.**

V. Analysis of the Motion to Strike

FCA seeks to strike both the punitive damages prayer (Prayer Item E) and the civil penalties prayer (Prayer Item F) from the Complaint. The Motion to Strike raises two principal issues: (1) whether Plaintiffs have adequately alleged facts supporting punitive damages under Civil Code section 3294, including the requisite corporate authorization or ratification; and (2) whether Plaintiffs complied with the pre-suit notice requirements of Code of Civil Procedure section 871.24 for civil penalties.

A. Punitive Damages

A plaintiff can recover punitive damages in tort cases where “the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Pursuant to Civil Code section 3294, subdivision (b), an employer will not be liable for punitive damages unless the employer engages with “the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (*Id.* at subd. (b).) Punitive damages thus require more than the mere commission of tort. “A claim for exemplary damage may be supported by pleading that the wrong was committed willfully or with a design to injure. The claim may also be supported by showing despicable conduct which is carried out by the defendant with a willful and conscious disregard of the

rights or safety of others. To establish conscious disregard, the plaintiff must show that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Spinks v. Equity Residential Briarwood Apartments*, (2009) 171 Cal. App. 4th 1004, 1055; internal citations and quotes omitted)

Fraudulent acts of concealment may support awards of punitive damages. (e.g., *Werschull v. United Cal. Bank* (1978) 85 Cal. App. 3d 981, 1004.) More specifically, in lemon law cases, a car manufacturer’s presale fraud or concealment is distinct from its subsequent conduct in breaching statutory warranty obligations, such that the Plaintiffs can recover punitive damages with a penalty under the Song-Beverly Act. (See, e.g., *Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal. App. 5th 828, 841; *Bowser v. Ford Motor Co.* (2022) 78 Cal. App. 5th 587, 627; *Anderson v. Ford Motor Co.* (2022) 74 Cal. App. 5th 946, 967-973; *Covert v. FCA USA, LLC* (2022) 73 Cal. App. 5th 821, 828.)

Here, the Complaint sufficiently alleges ultimate facts concerning fraud and concealment as analyzed with regard to the demurrer. Furthermore, concealment of a known safety defect that can cause fires and loss of vehicle control at highway speeds, where FCA possessed exclusive or superior knowledge and intentionally withheld it to complete sales, plausibly alleges despicable conduct carried on with conscious disregard of the safety of others. These allegations support the remedy for punitive damages.

However, FCA contends the Complaint’s allegations of fraud fail (1) to meet the clear and convincing evidence standard for punitive damages, and (2) to identify a single employer who was involved in the sale of the Subject Vehicle and had a decision-making power over corporate policy. (Motion at 6:22-24; 8:23-9:9). But the Court rejects those arguments for the following reasons:

1. FCA conflates pleading requirements with evidentiary requirements. FCA’s reliance on *Cruz v. HomeBase* (2000) 83 Cal.App.4th 160, and *Wilson v. Southern California Edison Co.* (2015) 234 Cal. App. 4th 123, for the proposition that corporate ratification requires identification of specific officer/director, is misplaced. These cases address the sufficiency of trial evidence, not the adequacy of pleading. In pleading a claim for fraudulent concealment, Plaintiffs are required to plead ultimate facts; not evidentiary details identifying the individual corporate agent by name. FCA, unlike Plaintiffs, is in a position to know the exact employees responsible for decisions to disclose defects. Plaintiffs have sufficiently put FCA on notice of the purported fraudulent omission for FCA to prepare a defense.
2. The Complaint alleges that FCA knew or learned about the EGR Defect from various internal sources, including pre-production testing data, aggregate warranty data compiled from its nationwide dealer network, and testing conducted in response to consumer complaints. The Complaint further alleges FCA nonetheless continued to sell the Subject Vehicle without disclosure, and even issued a recall (Recall 19V-757) acknowledging the defect but stating no remedy was available. (Complaint ¶¶ 19, 20, 22-29) The Court can reasonably infer that a decision of this scope—to withhold a known, safety-related defect from the consuming public

across FCA's dealer network, to continue manufacturing and selling affected vehicles, and to issue a national recall without providing an adequate remedy—is not plausibly attributable to a single low-level employee acting alone. It is the kind of policy-level decision that is necessarily made, authorized, or ratified by those who set corporate policy. At the pleading stage, where all reasonable inferences are drawn in Plaintiffs' favor and allegations are assumed true, this is sufficient to satisfy Civil Code section 3294, subdivision (b).

Accordingly, FCA's Motion to Strike Prayer Item E for punitive damages is **DENIED**.

B. Civil Penalties

FCA also seeks to strike Plaintiffs' civil penalties prayer on the grounds that Plaintiffs failed to comply with Code of Civil Procedure section 871.24, subdivision (a), which requires a consumer to provide written demand for restitution at least 30 days before commencing an action seeking civil penalties under Civil Code section 1794(c). FCA notes Plaintiffs requested a buyback on November 28, 2025, only five days before filing suit on December 3, 2025. (Motion at 9:12-25)

Code of Civil Procedure section 871.24 provides that at least thirty days prior to filing suit, a plaintiff shall, while in possession of the motor vehicle at issue, "(1) [n]otify the manufacturer of the consumer's name, the accurate Vehicle Identification Number ('VIN') of the motor vehicle, and a brief summary of the repair history and problems with the motor vehicle [and] (2) [d]emand that the manufacturer repurchase or replace the motor vehicle." (Code Civ. Proc., § 871.24(a).) Failure to do so does not prevent the consumer from filing suit, but bars the recovery of civil penalties. (Code Civ. Proc., § 871.24(h).)

Here, Plaintiffs allege that they requested a buyback or restitution on November 28, 2025. (Complaint ¶ 41) Whether that communication satisfied the content, manner, and timing requirements of section 871.24(a) depends on extrinsic facts not appearing on the face of the complaint. The statute itself provides that "[m]inor deviations in the notice submitted pursuant to subdivision (a) shall not disqualify consumers from seeking civil penalties." (Code Civ. Proc., § 871.24, subd. (b).) Whether the five-day gap between demand and filing of the complaint constitutes minor or substantial deviation is a factual question that cannot be resolved on the pleadings alone.

Additionally, Code Civ. Proc. § 871.24 by its own terms governs only an action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code. It says nothing about, and does not condition, a civil penalty sought under subdivision (e) of Civil Code § 1794. Subdivision (e) provides a separate and independent basis for a civil penalty where the manufacturer fails to maintain a qualified third-party dispute resolution process that substantially complies with Civil Code section 1793.22. (Civ. Code § 1794(e).) The Complaint and Prayer Item F seek the civil penalty under subdivision (c) or (e) in the alternative.

Accordingly FCA's Motion to Strike the complaint's Prayer Item F on this ground is **DENIED**.

VI. Conclusion & Order

FCA Demurrer to the Complaint's Fourth and Sixth Causes of Action is **OVERRULED**.

FCA's Motion to Strike portions of the Complaint is **DENIED**.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 4

Case Name: *Melissa Ikeda, et al. v. FCA US LLC, et al.*

Case No.: 25CV481480

See Line 3 above for complete tentative ruling on both the Demurrer and the Motion to Strike. After the hearing, the Court will prepare and file one formal Order on both the Demurrer and the Motion to Strike.

Line 5

Case Name: *Kamila Kraba v. Armsby Lane Road Association*

Case No.: 25CV478200

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff and Cross-Defendant Kamila Kraba (“Kraba”) demurs under Code of Civil Procedure Sections 430.10 and 430.50 to the Cross-Complaint of Armsby Lane Road Association (“ALRA”) on the following grounds:

1. Lack of Capacity to Sue and Unauthorized Practice of Law (C.C.P. § 430.10(b); Bus. & Prof. Code § 6125);
2. Uncertainty (C.C.P. § 430.10(f));
3. Failure to State Facts Sufficient to Constitute a Cause of Action (C.C.P. § 430.10(e));
4. Violation of Public Policy and Ethical Rules (C.R.P.C. Rules 3.7 & 1.7);
5. Reliance on False Testimony and Misrepresentations (Penal Code § 118; C.C.P. 128.7);
6. Misapplication of Civil Code § 845;
7. Failure of Mandatory Meet and Confer (C.C.P. § 430.41)

Notice of Demurrer (the “Demurrer”) at 2:21-52¹ (filed: Feb 11, 2026).

The Demurrer came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background & Factual Allegations of the Cross-Complaint

ALRA is an unincorporated association of neighbors who reside on Armsby Lane or one of its side roads, which was organized to provide a framework for maintenance of Armsby Lane. ALRA is governed by the Armsby Lane Road Agreement bylaws and Joint and Mutual Repair and Maintenance Agreement which runs with the properties abutting and using Armsby Lane. Kamila Kraba owns and resides at a property located on Armsby Lane and is a member of ALRA. (Cross-Complaint ¶¶ 1, 2)

At an annual meeting held on May 29, 2024, a majority of the ALRA members approved a special assessment for repairing and resurfacing the length of Armsby Lane as well as repairing the bridge on Armsby. The approved amount of the special assessment was \$341,780.00 plus twelve percent. Kraba did not attend the meeting but voted against the

¹ These are the (unusual) line numbers that appear on this filed Demurrer.

special assessment by proxy. (Cross-Complaint ¶¶ 9, 14)

On August 7, 2024, invoices were sent to each member for their share of the special assessment with payments due no later September 7, 2024. Kraba received an invoice for \$17,740.73 for her share of the special assessment, which she has not paid to date. On June 28, 2025, members of the ALRA authorized the board to record liens against the delinquent members' properties in accordance with the amendment to the 2004 Road Agreement. (Cross-Complaint ¶¶ 10, 11, 16)

Kraba, initiated this action on October 21, 2025, alleging causes of action for: breach of contract; governance violations; reckless disregard of members' rights; breach of fiduciary duty; reckless disregard of her rights to transparency, accuracy, due diligence related to Armsby Ln road repairs; rigid enforcement of Civil code § 845 without due process; selective enforcement of the 2004 road agreement; refusal to mediate per Civil Code § 5935; and Breach of fiduciary duty: VP serves as ALRA counsel. (Complaint PLD-C-001, ¶¶ 8, 9, 11, MC-025 Attachment to the Complaint.)

ALRA filed its verified Cross-Complaint on January 14, 2026, alleging causes of action for (1) breach of contract, (2) declaratory relief, (3) enforcement of lien, (4) compensatory damages pursuant to civil code section 3333, (5) violation of civil code section 845.

II. Legal Standards

“The party against whom complaint or cross-complaint has been filed may object, by demurrer or answer as provided in [Code of Civil Procedure] section 430.30, to the pleading on any one or more of the following grounds: . . . (e) The pleading does not state sufficient facts to constitute cause of action, (f) The pleading is uncertain.” (C.C.P. § 430.10(e) & (f).) A demurrer may be used to object to the legal sufficiency of the pleading as whole, or to any cause of action stated therein, on one or more of the grounds enumerated by statute, however, it must dispose of an entire cause of action to be sustained. (C.C.P. §§ 430.10 & 430.50(a); *Fremont Indem. Co. v. Fremont Gen. Corp.* (2007) 148 Cal. App. 4th 97, 119.)

A demurrer tests the legal sufficiency of the factual allegations in a complaint.” (*Redfearn v. Trader Joe's Co.* (2018) 20 Cal. App. 5th 989, 996.) The court must determine “whether the complaint alleges facts sufficient to state a cause of action or discloses a complete defense.” (*Id.*) The court assumes “the truth of the properly pleaded factual allegations, facts that reasonably can be inferred from those expressly pleaded and matters of which judicial notice has been taken.” (*Id.*) Whether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer. (*Erlach v. Sierra Asset Servicing, LLC*, (2014) 226 Cal. App. 4th 1281, 1291.)

Courts “give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (*Goncharov v. Uber Techs., Inc.* (2018) 19 Cal. App. 5th 1157, 1165.) Courts “construe the complaint ‘liberally ... with a view to substantial justice between the parties[.]’” (*Id.*)

Under Code Civ. Proc. § 430.10(f), a demurrer may also be sustained if a complaint is uncertain i.e., ambiguous and unintelligible. Demurrers for uncertainty are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond. A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures. (See, *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 695; internal citation and quotes omitted.)

Importantly here, a court may, upon motion, or at any time in its discretion, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc, § 436, subd. (a).) Furthermore, a court may also strike all, or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc, § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc, § 437.)

Under the strong policy of California law permitting liberal amendment of pleadings and in favor of resolving cases on their merits, leave to amend the complaint is routinely granted even if a demurrer is sustained. “Liberality in permitting amendment is the rule, if fair opportunity to correct any defect has not been given.” (*Angie M. v. Superior Court* (1995) 37 Cal. App. 4th 1217, 1227.) “Unless the complaint shows on its face that it is incapable of amendment, denial of leave to amend constitutes an abuse of discretion, irrespective of whether leave to amend is requested or not.” (*McDonald v. Sup. Ct. (Flintkote Co.)* (1986) 180 Cal. App. 3d 297, 303-304.)

III. Preliminary Consideration

Kraba has submitted nine exhibits in support of her Demurrer to the Cross-Complaint. The submitted exhibits are impermissible extrinsic matters that cannot and will not be considered by the Court *at this pleading stage of the case* to resolve the demurrer or any pleading defects. “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.” (*SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.) “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Id.*)

IV. Request for Judicial Notice

ALRA seeks Judicial Notice of its Cross-Complaint and Kraba’s statement of facts that were filed in this action and are part of the Court’s records.

ALRA’s request for Judicial Notice is **GRANTED IN PART**. Evidence Code section 452, subdivision (d), permits judicial notice of “records of any court of this state.” (Code Civ. Proc., § 452, subd. (d).) These documents are court records for which the Court can and does here judicially notice their *existence*. But the Court will not consider the truth of the statements contained in the documents. (*Joslin v. H.A.S. Ins. Brokerage* (1986) 184 Cal.App.3d 369, 374-375.)

Kraba requests Judicial Notice of ALRA’s various governing documents, records of

meetings, and corporate text revisions. Kraba's request is **DENIED** because these submitted documents are irrelevant to the Court's analysis and decision in the instant demurrer that concerns only deficiencies in the pleadings. (See, *Soukup v. Law Offices of Herbert Hafif* (2006) 39 Cal.4th 260, 295 [court is not required to take judicial notice of irrelevant documents].)

V. Analysis

The key issue raised by the Demurrer is whether ALRA had capacity to file its Cross-Complaint through its authorized president, Paige Cisewski, who was not a California licensed attorney.

A corporation, or association, has the capacity to bring a lawsuit because it has all the powers of a natural person in carrying out its business. (Corp. Code §§ 105, 207.)

But under a long-standing California law, a corporation, unlike a natural person, cannot represent itself before courts of record in a civil action, nor can it represent itself through a corporate officer, director or other employee who is not an attorney. It must be represented by licensed counsel in civil actions in California courts. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal. App. 4th 1141, 1145.)

The requirement for legal representation for corporations in civil actions in California applies to all entities regarded as separate from their owners, including partnerships and unincorporated associations. An unincorporated association resembles a corporation more than it does an individual. (*Clean Air Transport Systems v. San Mateo County Transit Dist.* (1988) 19 Cal.App.3d 576, 578.)

Here, in reviewing the record when analyzing this Demurrer, the Court sees that between January 12-14, 2026, ALRA filed—

- its Ex-Parte Application to set aside the December 16, 2025 Default,
- ALRA's Answer to the Complaint, and
- ALRA's Cross-Complaint

—*not* through a licensed attorney but by its President Cisewski. So these three documents were improperly filed by ALRA when not represented by counsel on January 12-14, 2026.

The question the Court is now squarely faced with is what to do about these improperly-filed documents that that ALRA filed in this civil action when it was not represented by a lawyer at that time, but it is now represented by a lawyer. The Court finds analogous and instructive the case *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal. App. 4th 1141. In *CLD Construction*, the Cross-Complaint was filed when the corporation there was unrepresented. While finding that the Cross-Complaint was improperly filed by a corporation when it was not represented by a lawyer, *CLD Construction* held that the pleadings were *not* void—because “[t]o deem a pleading void because the corporation on whose behalf it was filed, although statutorily authorized to be a party, did not have an attorney sign the pleading, elevates the attorney to a role akin to

that of an indispensable party” (*id.* at 1150)—and so could be struck *yet corrected* by the corporation being granted leave to file amended pleadings through their licensed attorney. (*Id.* at 1149-1152). *CLD Construction* reasoned:

Given the weight of nationwide authority and this state’s increasing acceptance of the view that representation of the corporation by an attorney is *not* an absolute prerequisite to the court’s fundamental power to hear or determine a case, we are persuaded it is more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court. First and foremost, this approach honors the cornerstone jurisprudential policies that, in furtherance of justice, *complaints are to be liberally construed (§ 452) and disputes should be resolved on their merits.*

CLD Construction, 120 Cal. App. 4th at 1149 (citing *Hocharian v. Superior Court* (1981) 28 Cal. 3d 714, 724) (emphasis added).

As well put by *CLD Construction* when remanding the matter there with directions to permit the corporation leave to file an amended pleading: “The corporation should not be foreclosed with its legal right to sue because of a defective complaint that can be readily and easily cured without prejudice to either its opponent or the court.” *CLD Construction*, 120 Cal. App. 4th at 1152. And this is so because the fact that a corporation was not represented by counsel at the initial pleading stage of a lawsuit did not *prejudice* the opposing party. At such an early stage, granting leave to amend to allow a corporation now represented by licensed California counsel to file pleadings corrects the defect, permits prosecution and defense of the action (and cross-action) on its merits, and comports with fundamental fairness and substantial justice.

Accordingly, following the cogent reasoning and holding of *CLD Construction*, the Court **SUSTAINS** Kraba’s Demurrer *but* also gives ALRA **LEAVE** to file a First Amended Cross-Complaint through its licensed lawyer **within 30 days of today**. Doing so strikes the appropriate balance of recognizing that ALRA improperly filed the Cross-Complaint when it did so on January 14, 2026 without counsel, but still gives ALRA a full and fair chance to correct this defect and to assert its claims when it is represented by counsel now.

The same logic holds for ALRA’s Ex-Parte Application and Answer that it improperly filed without counsel on January 12, 2026 and January 14, 2026, respectively. Recognizing that these two documents were improperly filed, the Court *sua sponte* **STRIKES** them both from the from the record now.²

² Under Code. Civ. Proc. § 436, the Court may, upon a motion or at any time in its discretion, and upon terms it deems proper, strike out “all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code. Civ. Proc. § 436)

Likewise, the Court should not have granted ALRA's January 12, 2026 Ex Parte Application because it was improperly filed. By granting that improperly-filed Ex Parte Application to vacate the December 16, 2025 Default, the Court improperly vacated that Default. Hence, the Court **ORDERS** the Clerk of the Court now to re-enter and reinstate the December 16, 2025 Default in favor of Kraba and against ALRA.

But—just like *CLD Construction* did—the Court here gives ALRA the fair chance to cure the defects that ALRA created (by filing its Ex Parte Application and Answer when not represented by a lawyer) by now giving ALRA **LEAVE** within 30 days of today to file a Motion:

(a) to set aside the December 16, 2025 Default,³ and

(b) for Leave to file an Answer on behalf of ALRA.

Doing so vindicates the strong policy of California law allowing liberal amendments and ensuring that all claims and defenses in this action are decided on their merits.

VI. Conclusion & Order

Accordingly, the Court **ORDERS**:

- Kraba's Demurrer to the Cross-Complaint is **SUSTAINED**, with ALRA given **LEAVE TO AMEND** to file a First Amended Cross-Complaint through its licensed counsel of record **within 30 days of today**.
- ALRA's Ex Parte Application filed on January 12, 2026, when ALRA was not represented by counsel is **STRICKEN**.
- ALRA's Answer filed on January 14, 2026, when ALRA was not represented by counsel is **STRICKEN**.
- The Clerk of the Court is **ORDERED** to re-enter and reinstate now the Default entered in favor of Kraba and against ALRA on December 16, 2025.
- ALRA is given **LEAVE within 30 days** of today file a Motion through its licensed counsel of record:

(a) to set aside on equitable grounds the December 16, 2025 Default, and

(b) for Leave to file an Answer on behalf of ALRA.

³ While the statutory deadline to set aside this Default under statutory grounds under Code. Civ. Proc. § 473 might have lapsed, the Court here gives ALRA leave to move to set aside the Default under equitable grounds.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 6

Case Name: *LVNV Funding LLC v. Teresa L. Pulido, et al.*

Case No.: 21CV387694

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Teresa Lopez Pulido (“Defendant”) moves under Code of Civil Procedure Section 473.5 to vacate the Default and Default Judgment on the ground that she did not receive actual notice of this action in time to defend it. Notice of Motion (the “Motion”) at page 2.⁴ (filed: Dec. 22, 2025).

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court DENIES the Motion on two independent grounds: (1) the Motion is time-barred under Code of Civil Procedure section 473.5(a); and (2) Defendant’s Declaration is too conclusory to satisfy the statutory showing required by Code of Civil Procedure section 473.5(b).

I. BACKGROUND AND PROCEDURAL HISTORY

This action arises from a debt-collection matter brought under the Fair Debt Buying Practices Act. (Civ. Code, § 1788.50 et seq.). Plaintiff LVNV Funding LLC (“Plaintiff”) filed the Complaint on August 25, 2021.

The court file and docket of this case, of which the Court takes Judicial Notice, shows all of the following:

Default was entered by the Clerk of the Court on August 28, 2023. And that before entry of default, plaintiff mailed a copy of the Request for Entry of Default on July 19, 2023, to Teresa L Pulido 385 Manferd St Milpitas CA 95035-2646.

On April 11, 2025, the Court entered Default Judgment in favor of Plaintiff and against Defendant in the amount of: (1) Damages \$3,567.76 (2) Prejudgment interest \$0.00 at the annual rate of 10% (3) Attorney fees \$810.16 (4) Costs \$278.00 (5) TOTAL \$4,655.92.

The Default Judgment was signed and dated by Judicial Officer Theodore C. Zayner on April 11, 2025. The Court took Judicial Notice at the time of Entry that defendant was properly served with a copy of the Summons and Complaint; Defendant

⁴ This filed Motion does not contain page number or line numbers. The Court has supplied the page numbers here for clarity of the record.

failed to answer the complaint or appear and defend the action within the time allowed by law; and Defendant's default was entered by the clerk upon Plaintiff's application.

Importantly, the court file and docket of this case expressly state that the April 11, 2025 Default Judgment was **served on Defendant on April 14, 2025**, by being "mailed on 4/14/2025" by the Clerk of the Court to Defendant. *See* Case Docket, 21CV387694, Event: "Judgment: Default \$4,655.92 For: Plaintiff LNNV Funding LLC Against Defendant Tereas L. Pulido mailed on 4/14/2025" (filed: April 15, 2025).

Defendant now moves under Code of Civil Procedure Section 473.5 to vacate the Default and the Default Judgment against her. The Motion is supported by Defendant's Declaration and a proposed Answer.

Defendant's Declaration states that she did not receive actual notice of this lawsuit in time to defend the action, that the Summons and Complaint in this case were served at an old address at which I did not reside at the time of service, and that she never received the Summons, Complaint, or any other court papers related to this case prior to the entry of Default and Default Judgment. She states that she first became aware of the Default Judgment in this case on January 16, 2026, when she was served paperwork at her place of employment indicating that her wages were going to be garnished. Before that date, she says she had no knowledge that a lawsuit had been filed against me or that a Judgment had been entered. She further states that upon learning of the judgment, she acted promptly and diligently to investigate the matter and seek relief from the Court, and had she received actual notice of this lawsuit, she would have timely responded and defended the action. Declaration of Teresa Lopez Pulido at ¶¶ 2-8 (filed: Jan. 21, 2026).

II. LEGAL STANDARD

Relief from a Default or Default Judgment under Code of Civil Procedure Section 473.5 is a creature of statute; meaning, that a party seeking relief under Section 473.5 must meet its statutory requirements or else the Court lacks authority to grant the relief requested under that statement.

Specifically, Code of Civil Procedure Section 473.5 authorizes relief from Default or Default judgment "when service of a summons has not resulted in actual notice to a party in time to defend the action[.]" (C.C.P. § 473.5(a)).

By the plain text of Section 473.5, the party moving for relief under Section 473.5 (here, Defendant) has the burden of satisfying two statutory requirements.

First, the Section 473.5 Motion must be filed within a reasonable time, but in no event exceeding the *earlier* of: (i) two years after entry of a default judgment against him or her; or (ii) *180 days after service* on him or her of a written notice that the default or *default judgment has been entered*. (C.C.P. § 473.5(a) (emphasis added)).

Second, the motion must be supported by an affidavit showing under oath that the party's lack of actual notice in time to defend the action was not caused by his or her

avoidance of service or inexcusable neglect. (C.C.P. § 473.5(b)). The plain text of this statute thus requires the moving party to establish affirmatively that any failure to receive notice was not the result of the party's own negligence or inaction. In other words, a movant whose lack of notice is attributable to the movant's own failure to maintain or provide a current address may be barred from relief, and that a bare assertion that the service address was no longer the movant's residence is insufficient when the address gap is attributable to the movant's own conduct.

Unfortunately, Defendant to carry her burden of satisfying those two statutory requirements for reasons the Court now explains.

III. ANALYSIS OF THE MOTION

A. This Section 473.5 Motion is time-barred by Section 473.5(a)(ii)

The Court has reviewed the register of actions and court file in this case. The Court takes judicial notice of its own records and finds the following facts:

Default was entered on August 28, 2023.⁵

Default Judgment was entered on April 11, 2025.⁶

Written notice of entry of April 11, 2025 Default Judgment was served by mail by the Clerk of the Court on Defendant on April 14, 2025.⁷

As explained above, Section 473.5(a) requires that the Motion be filed within a reasonable time, but in no event exceeding the earlier of two years after entry of default judgment or 180 days after service of written notice of entry of default or default judgment. Because written notice of entry of default judgment was served on Defendant on April 14, 2025, the 180-day deadline under subdivision (a)(ii) applies.

Defendant filed this motion on January 20, 2026. That date is 281 days after April 14, 2025, more than 100 days beyond the 180-day statutory limit. The Motion is therefore time-barred by the plain text of Code of Civil Procedure section 473.5(a)(ii).

⁵ See Case Docket, 21CV387694, Event: "Default Entered For: Plaintiff LNNV Funding LLC Against: Defendant Tereas L. Pulido mailed on 4/14/2025" (filed: Aug. 28, 2023).

⁶ The Default Judgment in this Case No. 21CV387694 states that this "Judgment Is Entered As Follows By the Court in favor of LNNV Funding LLC, and against Defendant Tereas L. Pulido" in the total amount of "\$4,655.92," and was entered, dated, and signed by Judge Theodore C. Zayner on "April 11, 2025."

⁷ See Case Docket, 21CV387694, Event: "Judgment: Default \$4,655.92 For: Plaintiff LNNV Funding LLC Against: Defendant Tereas L. Pulido **mailed on 4/14/2025**" by Clerk of the Court (filed: April 15, 2025) (emphasis added).

Defendant's subjective discovery of the judgment through wage-garnishment paperwork on January 16, 2026, does not extend or reset this 180-day statutory deadline. The statute measures the deadline from the date written notice of entry of default judgment was served, not from the date the defendant subjectively became aware of the judgment through some other means.

Because the motion was filed outside the statutory time limit, the Court may not grant relief under section 473.5. Accordingly, the Motion must be DENIED on this ground alone.

B. Defendant's Declaration is Insufficient under Section 473.5(b).

Even if the Motion were timely, the Court would deny it on the independent ground that defendant's Declaration is too conclusory to satisfy the statutory requirement that the lack of actual notice was not caused by avoidance of service or inexcusable neglect. (C.C.P. § 473.5(b))

Defendant states in her Declaration that service was made at an old address at which she did not reside at the time of service. However, the Declaration provides no information regarding when she moved from the 385 Manferd Street address, where she resided at the time of service, whether she arranged mail forwarding from the old address, whether the old address remained one at which she could reasonably receive mail, or why plaintiff possessed that address as her address of record. The Declaration does not establish that defendant moved before the Complaint was filed on August 25, 2021, or that any failure to receive process was entirely through no fault of her own.

Section 473.5's requirement that the lack of actual notice not be caused by inexcusable neglect imposes an affirmative burden on the moving party—here, Defendant—to explain the circumstances surrounding the address discrepancy and to establish that the failure to receive notice was not the result of the movant's own inaction or failure to maintain current address information. Bare assertion of nonresidence at the service address, without factual detail distinguishing the movant's situation from a case of inexcusable neglect, is insufficient to carry this burden.

Defendant's Declaration here amounts to a bare assertion of nonresidence at the service address, without the factual detail necessary to distinguish her situation from a case of inexcusable neglect. The absence of any chronology of residence changes, any explanation of mail-forwarding arrangements or the absence thereof, any documentary corroboration of residence at a different address at the time of service, or any showing that the address used by plaintiff resulted from circumstances beyond defendant's control renders the declaration insufficient under the statutory standard.

Hence, Defendant's Declaration fails to meet statutory requirement that the moving party establish affirmatively that the lack of actual notice before discovery was not caused by avoidance of service or inexcusable neglect. On the present record, Defendant has not carried that burden.

Because the Declaration fails to establish the absence of inexcusable neglect, the Section 473.5 motion fails.

IV. CONCLUSION & ORDER

For the foregoing reasons, the Motion of Defendant Teresa Lopez Pulido to set aside the default entered on August 28, 2023, and the default judgment entered on April 11, 2025, is **DENIED** on the following grounds:

The motion is time-barred under Code of Civil Procedure section 473.5(a)(ii), because it was filed more than 180 days after service of written notice of entry of Default Judgment on April 14, 2025.

Even if the motion were timely, it would be denied because Defendant's Declaration is too conclusory to establish that the lack of actual notice was not caused by avoidance of service or inexcusable neglect, as required by Code of Civil Procedure section 473.5(b).

The Default entered on August 28, 2023, and the Default Judgment entered on April 11, 2025, remain in full force and effect.

SO ORDERED.

Date: August 19, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

Line 7

Case Name: *Gerber J. Flores Marquez v. All Fab Precision Sheetmetal Inc., et al.*

Case No.: 23CV411306

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Gerber J. Flores Marquez (“Plaintiff”) moves to compel Defendant Ho Enterprises, LLC (“Ho Enterprises”) to serve further responses to Plaintiff’s Form Interrogatories, Set One (“FROGs”) served on April 23, 2026, and for sanctions against Defendant Ho Enterprises (“Defendant”) and its attorney Ted Broomfield, jointly and severally, in the amount of \$5,260.00 under Code of Civil Procedure Sections 2023.010(d),(e),(f),(i), 2023.030(a) *et seq.*, and 2030.300(d) for Plaintiff’s reasonable attorney’s fees and costs incurred for this Motion. Pl.’s Amended Notice of Motion (the “Motion”) at 2:7-18 (filed: July 17, 2026).

Defendant opposes the Motion and requests in its Opposition papers that the Court either continue the hearing until no earlier than February 22, 2027, or deny the motion and award Defendant \$4,710.12 in sanctions against Plaintiff and his attorney.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows. The Court **GRANTS** Plaintiff’s Motion to compel further responses to the Form Interrogatories in full, **ORDERS** Ho Enterprises to serve verified code-compliant further responses to the Form Interrogatories within thirty days of today, **AWARDS** Plaintiff reduced monetary sanctions in the amount of **\$2,750.00** jointly and severally against Ho Enterprises and its counsel Broomfield, and **DENIES** Defendant’s request for continuance and sanctions.

I. Procedural History and Factual Background

Plaintiff filed this action on February 7, 2023, arising out of a workplace injury involving a work press machine that amputated two of Plaintiff’s fingers. All Fab Precision Sheetmetal (AFPS) is Plaintiff’s employer and owner of the work press machine that amputated Plaintiff’s fingers. AFPS is sued under the work press exception to the workers’ compensation exclusivity rule.

The operative pleading now is Plaintiff’s First Amended Complaint (“FAC”). The Court granted Plaintiff leave to file the FAC by minute order dated January 30, 2026, adopting the tentative ruling of Hon. Vincent I. Parrett. The original Complaint was originally filed on February 7, 2023; Plaintiff filed the FAC on February 2, 2026. The FAC expanded Plaintiff’s theories of liability to negligence and premises liability as applied to

Defendants as landlord and shareholders of the employer, All Fab Precision Sheet Metal, Inc.

Defendants Kelley Ho and Son Ho own Defendant Ho Enterprises, LLC (Ho Enterprises). Ho Enterprises also owns the building that AFPS uses to run its business. Plaintiff characterizes Ho Enterprises as the landlord and tenant, as well as the owner of the business (AFPS) and the subject work press.

On April 23, 2026, Plaintiff electronically served Plaintiff's Form Interrogatories—General to Defendant Ho Enterprises, LLC. On May 19, 2026, defense counsel requested an additional extension to June 18, 2026, which Plaintiff's counsel granted. On June 18, 2026, counsel for defendant electronically served what purports to be Responses to Plaintiff's Form Interrogatories—General to Defendant Ho Enterprises LLC. Having reviewed these responses carefully, the Court finds that Defendant's responses consist entirely of boilerplate objections. No substantive information was provided in response to any interrogatory.

The responses asserted that discovery is Premature – Demurrer is calendared, and these responses are thereby Harassing and Oppressive and are Unduly Burdensome until the demurrer is disposed of; Harassing & oppressive, asked solely to intimidate; Relevance, not reasonably calculated to lead to admissible evidence; Invades Privacy Privilege, RESPONDING PARTY'S contact information is protected private data under the California Constitution, as well as statutes, regulations, and cases that interpret the same; and Misuse of discovery in attempt to force settlement, evidenced through service two and a half hours after seeking default and Plaintiff's email stating Defendant should be insured and insurance appointed counsel should represent Defendant. The responses expressly stated that if an answer were filed, defendants would respond substantively.

The Demurrer is calendared for January 6, 2027, which was the earliest date available. No answer has been filed. The demurrer seeks dismissal without leave to amend on the ground that defendants are not proper parties.

II. Analysis of the Motion

A. This Motion to Compel is timely filed.

Under Code of Civil Procedure section 2030.300(c), a motion to compel further interrogatory responses must be filed within 45 days of service of the verified response, or any supplemental response, or on or before any specific later date to which the parties have agreed in writing. § 2030.300(c) *id.* § 2030.300(b)(1). Failure to file within this period renders the court without jurisdiction to compel further responses. (*Id.* § 2030.300(c).)

When responses are electronically served, Code of Civil Procedure section 1010.6(a)(4) extends by two court days any right or duty to do an act within a period prescribed by statute after service by electronic means. (C.C.P. § 1010.6(a)(3)(B).) This provision applies to a filing deadline that runs after electronic service of the triggering

document. (C.C.P. § 1010.6(a)(3)(C).)

Under Code of Civil Procedure section 2030.250(a), interrogatory responses ordinarily must be signed under oath unless the response contains only objections. (§ 2030.250.) The reasoning of *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal. App.5th 127 strongly suggests that objections-only responses most likely start the 45-day clock upon service, because otherwise the timing requirement could vanish entirely for that category of response, contrary to the statute's prompt-resolution function. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

Here, the Form Interrogatories were electronically served on April 23, 2026. Defense counsel obtained an extension to June 18, 2026. Ho Enterprises electronically served its responses on June 18, 2026. The responses consisted entirely of objections with no substantive answers. Under section 2030.250(a), objections-only responses do not require verification. (§ 2030.250.)

Counting 45 calendar days from June 18, 2026, yields August 2, 2026. Because responses were served electronically, the two-court-day extension under section 1010.6(a)(4) applies, extending the deadline to August 5, 2026. (§ 1010.6(a)(3)(B).) The amended motion was filed on July 17, 2026, at 3:12 PM, p:2c59eb8a which is 29 calendar days after June 18, 2026. Accordingly, the Court rules that the Motion was timely. Even without applying the two-court-day electronic-service extension, July 17 falls well before the August 2 deadline.

The parties' written extension concerned only the deadline to serve responses, not the deadline to move. Any extension of the motion deadline must itself be specifically agreed to in writing. (*Sexton v. Superior Court of Los Angeles Cnty.* (1997) 58 Cal.App.4th 1403, 1406; *Lincolnshire Condominium, Ltd. v. Superior Court* (1984) 158 Cal.App.3d 524, 526.) No such extension appears in the record.

The pending demurrer and absence of an answer do not alter the jurisdictional deadline. (Code Civ. Proc., § 2030.290.) Where a timely response has been served, the proper vehicle is a motion to compel further responses under section 2030.300, not a motion for initial responses under section 2030.290, even if the served response consists only of objections. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.)

As the Motion is timely, the Court will now proceed to resolve in on its merits.

B. While Plaintiff's meet-and-confer efforts were deficient, the Court will still resolve the Motion on its merits, and will consider this deficiency as relevant to the amount of sanctions reasonably awarded under these circumstances.

A motion to compel further interrogatory responses must be accompanied by a meet-and-confer declaration under Code of Civil Procedure section 2016.040 showing a reasonable and good-faith attempt to resolve informally each issue presented by the

motion. (§ 2016.040(a); § 2030.300(b)(1).) This requirement is substantive, not ceremonial; the parties must present their positions with candor, specificity, and support so that each side can assess the merits before court intervention. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431.) Mere argument, bickering, or ultimatum-style demands do not satisfy the statutory standard. (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431.)

If the meet-and-confer showing is deficient, denial is not automatic in every case; the Court has discretion to deny, continue, or reach the merits depending on the procedural deficiency and the actual posture of the dispute. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

Plaintiff's pre-Motion meet and confer efforts were deficient. Plaintiff sent exactly two meet-and-confer emails pertaining to this discovery dispute. Plaintiff sent the first seventeen minutes after receiving the responses and the second thirty-five minutes after receiving the responses. Neither email identified a single interrogatory, a single objection, or a single defect. Neither email sought informal resolution without court intervention. The second email threatened a motion and sanctions if Plaintiff did not get what he wanted within one week. No telephonic conference, video conference, or in-person meeting occurred on this dispute and Plaintiff never requested one.

By the standards articulated in *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431 *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277; Plaintiff's two near-instantaneous, non-specific emails constitute a shoddy meet-and-confer effort. The emails were too immediate, too general, and too ultimatum-like. Plaintiff did not identify any specific interrogatory or explain any deficiency with the particularity needed to enable informal resolution.

Defense counsel responded, expressed a desire to avoid motion practice, and suggested that a supplemental interrogatory if demurrer were overruled and after defendant answered would resolve the dispute. On July 24, 2026, after Plaintiff filed the motions, defense counsel emailed Plaintiff's attorney offering to stipulate in writing that defendants would serve substantive responses to the already-served written discovery within thirty days after defendants file an answer, if the January 6, 2027 demurrer is overruled or leave to amend is granted and defendants elect to answer. Plaintiff never responded to the July 24, 2026 email.

Yet this procedural deficiency should not defeat the Motion on its merits. The dispute is fully joined, the legal issues are sharply presented, and Defendant served no substantive information at all in response to any Form Interrogatory. The central dispute is straightforward—whether a pending demurrer postpones the duty to respond to interrogatories under California law—and that legal issue would not be resolved by further email exchanges or phone calls.

Defendant's fixed position that Code-Compliant responses to the Form Interrogatories would come only after demurrer and answer was not responsive to any effort by Plaintiff to engage on the merits of particular objections. Both of Defendant's

proposals merely repackaged the same *legally-impermissible* refusal to respond to this discovery now pending demurrer. Further conferral would likely have been futile procedural delay.

Exercising its broad discretion, the Court rules that the better course is to reach the merits notwithstanding the deficient meet and confer by Plaintiff, and to treat this deficiency by Plaintiff as relevant to whether the Court should reduce the *amount* of reasonable sanctions awarded under these circumstances, rather than as a basis to deny the Motion. (*Golf & Tennis Pro Shop v. Super. Ct.* (2022) 84 Cal.App.5th 127.)

C. Legal Standards for Motion

Under Code of Civil Procedure section 2030.300(a), a propounding party may move for an order compelling a further response to interrogatories if the responding party's answer is evasive or incomplete, an exercise of the option to produce documents is unwarranted or inadequate, or an objection is without merit or too general. (C.C.P. § 2030.300(a)(1) & (3)).

The responding party bears the burden of justifying any objection or incomplete answer. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The propounding party is presumptively entitled to Code-Compliant answers, and the burden of justifying any objection and failure to respond remains at all times with the resisting party. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) The Supreme Court in *Coy v. Superior Court* (1962) 58 Cal.2d 210, instructed that this burden is request specific; objections applied uniformly without particularized support are insufficient. (*Coy v. Superior Court* (Cal. 1962) *id.*, 23 Cal. Rptr. 393.) Boilerplate objection-only responses are legally inadequate. (*Masimo Corp. v. Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902.)

Under Code of Civil Procedure section 2017.010, discovery is available unless otherwise limited by court order. (§ 2017.010; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) California discovery rights are broad, and disclosure is a matter of right unless clearly prohibited by statute or public policy. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) Pleading deficiencies generally do not defeat discovery rights; the discovery question is not resolved by predicting whether a demurrer will succeed. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) A pending demurrer is *not* a legally cognizable basis to withhold discovery responses. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Courts may not impose extra-statutory proof-of-merits or pleading-merits preconditions on discovery. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.)

Where a party invokes burden or proportionality under Code of Civil Procedure section 2017.020, it must present evidence of the quantum of work required to answer the particular requests; generalized, speculative, or case-wide assertions do not suffice. (§ 2017.020; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) A party seeking to limit or defer interrogatory discovery on burden grounds should proceed by noticed motion for protective order under Code of Civil Procedure section 2030.090, with

the burden on that party to show unreasonable burden; unilateral blanket objections in the responses are not an adequate substitute. § 2030.090(a) *id.* § 2030.090; *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390. Because these are Judicial Council form interrogatories, blanket vagueness, overbreadth, and burden objections are especially disfavored; form interrogatories were designed to avoid wording disputes, and resistance requires particularized justification. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) Form interrogatories are Judicial Council-approved and presumptively proper. (Code Civ. Proc., § 2033.710; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

D. Defendant's Objection that Discovery Responses are Premature because a Demurrer was filed is Frivolous and Overruled.

Defendant asserts that responses are Premature because a Demurrer is calendared, and these responses are thereby Harassing and Oppressive and are Unduly Burdensome until the Demurrer is disposed of. That is nonsense under California law.

A pending demurrer does not authorize withholding interrogatory answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The burden of justifying objections and failures to respond remains with the resisting party, and discovery may not be conditioned on prior resolution of pleading attacks absent statutory authority. (*Id.*) Under section 2017.010, discovery is available unless otherwise limited by court order. (§ 2017.010; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) In this case, a demurrer is calendared for hearing on January 6, 2027, but a scheduled demurrer hearing is not a court order staying discovery. And Ho Enterprises has obtained no court order staying written discovery.

Pleading-stage disputes raised by demurrer do not suspend discovery obligations, and the existence of a pending demurrer or absence of an answer does not alter the jurisdictional deadline imposed by Section 2030.300(c). (C.C.P. § 2030.290.) Courts may not impose extra-statutory proof-of-merits or pleading-merits preconditions on discovery. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.). Hence, Defendant's demurrer-based objection provides no justification whatever for Defendant without all substantive responses to these Form Interrogatories.

A responding party cannot convert a legally nonexistent demurrer stay into a valid interrogatory response by promising to answer later if it loses the demurrer. Discovery responses must be Code-Compliant when due under the Discovery Act. Here, Defendant's responses that provided no substantive responses at all were not even close to Code-Compliant. And Defendant's conditional promise to respond only after demurrer and answer is not a Code-Compliant response.

Accordingly, Defendant's reliance on the pending demurrer to justify withholding all substantive responses is frivolous—and Defendant's objection on this ground is **OVERRULED.**

E. Defendant's Burden, Relevance, and Harassing Objections are Unfounded and Overruled.

Defendant asserts that the interrogatories are harassing & oppressive, asked solely to intimidate and not reasonably calculated to lead to admissible evidence. Defense counsel declared that the responses objected on grounds that the requests were premature and disproportionately burdensome until the demurrer is disposed of, because defendant may not even be a proper party and responding to discovery is not only time-consuming but expensive, with an estimated cost in excess of five thousand dollars.

But Defendant's showing as to burden is conclusory and unsupported by evidence. The record provides only a generalized cost assertion without particularized explanation of burden by interrogatory or category of information. Such conclusory excuses are insufficient. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.) Where a party invokes burden or proportionality under section 2017.020, it must present evidence of the quantum of work required to answer the particular requests; generalized, speculative, or case-wide assertions do not suffice. (§ 2017.020; *Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) The cost estimate says nothing about what work would be required to answer FROG 1.1 or the entity-information interrogatories (FROGs 3.1–3.7), what files would need review, what personnel time would be consumed, or why basic business information cannot be supplied now.

FROG 1.1 seeks the name, address, telephone number, and relationship to you of each person who prepared or assisted in the preparation of the responses to these interrogatories. FROGs 3.1 through 3.7 seek basic entity-identification information such as LLC information including name in articles of organization, other names used, date and place of filing, address of principal place of business, and California qualification. Those topics fall comfortably within the broad scope of permissible party discovery and should be readily available. (C.C.P. § 2017.010.) Defendant's generalized assertion that discovery is expensive does not establish that these particular interrogatories impose unreasonable burden.

Moreover, Defendant did not seek protective relief through the proper procedural vehicle. A party seeking to limit or defer interrogatory discovery on burden grounds should proceed by noticed motion for protective order under section 2030.090; unilateral blanket objections in the responses are not an adequate substitute. C.C.P. § 2030.090(a); *Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.

FROG 1.1's request for the identity and relationship of persons who prepared responses is directly relevant to evaluating the reliability and completeness of the responses themselves. FROGs 3.1–3.7 seek basic organizational information about Ho Enterprises, which is directly relevant to Plaintiff's premises-liability and general-negligence claims against the Ho defendants as alleged landlords and business owners. These topics are clearly reasonably calculated to lead to admissible evidence within the broad discovery standard. (§ 2017.010.) They are not harassing, intimidating, or irrelevant on any reasonable view.

Accordingly, in the exercise of its discretion, the Court rules that Defendant's burden, relevance, and harassment objections are unfounded and **OVERRULED**.

F. Defendant's Boilerplate Objection is Frivolous and Overruled.

Here, no substantive information was provided by Defendant in response to any Form Interrogatory. Rather, Defendant provided the same five-part objection package across all interrogatories. This is precisely the type of *boilerplate* objection condemned in *Korea Data Sys. Co. v. Superior Court* (1997) 51 Cal.App.4th 1513. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) The fact that Defendant references case-level facts—the demurrer date, the alleged timing of service, Plaintiff counsel's May 14 email—does not make the objections request specific. A single factual narrative pasted into every interrogatory response without interrogatory-specific explanation is still boilerplate when untailored to the subject matter of each request.

Under *Coy*, the responding party's burden is request-specific; objections applied uniformly without particularized support are insufficient. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) Boilerplate objection-only responses are legally inadequate. (*Masimo Corp. v. Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902.) The objections are especially disfavored here because these discovery requests are Judicial Council Form Interrogatories—as straightforward as discovery requests get—which were designed precisely to minimize wording disputes and reduce the need for objections on grounds of vagueness or ambiguity. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) Blank resistance to form interrogatories requires particularized justification, which Defendant has not provided. (§ 2033.710; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

Accordingly, the Court finds that Defendant's boilerplate objection package is frivolous and **OVERRULED**.

G. Defendant's misuse-of-discovery and settlement-pressure objections do not justify Defendant failing to provide Code-Compliant discovery responses—and are OVERRULED.

Defendant invokes misuse of discovery in attempt to force settlement, evidenced through service two and a half hours after seeking default and Plaintiff's email stating Defendant should be insured and insurance appointed counsel should represent Defendant. The record does contain mixed facts on this issue. On May 14, 2026, Plaintiff's attorney stated that the claim should have been submitted to the Ho defendants' insurance carrier, which would provide defense counsel, and that the Ho defendants should not be paying your bills to begin with. But the same email included statements supporting a legitimate evidence-gathering purpose.

Taking all this into account, the Court rules that even if Plaintiff applied settlement-pressure that does *not* independently justify Defendant withholding proper Code-Compliant responses to Form Interrogatories served by Plaintiff. In other words, Defendant's misuse and settlement-pressure objections do not justify Defendant's blanket

objections and failure to provide Code-Compliant responses—and are **OVERRULED**.

H. Defendant’s request to continue the hearing on this Motion to Compel further discovery responses is DENIED.

Defendant asks the Court either to continue the hearing on this Motion until no earlier than February 22, 2027, or to deny the Motion. But this continuance request is unsupported by any specific statute authorizing continuance of a motion to compel further responses merely because a demurrer is set months away. Deferring this motion to February 22, 2027, as Defendant requests, would create over eight months of discovery paralysis. No court order staying discovery exists. Accordingly, the Court **DENIES** Defendant’s request for a continuance of this Motion.

I. The Court GRANTS the Motion to Compel Further Responses to FROGS 1.1. and 3.1-3.7.

As to FROGS 1.1 and 3.1–3.7, the Motion is **GRANTED**. Defendant’s Objections to them—based, *inter alia*, on pending demurrer, generalized burden, harassment, irrelevance, and settlement-pressure misuse—have all been **OVERRULED** above. Defendant has an affirmative obligation to provide Code-Compliant responses to them, and no ground whatever not to. Defendants’ objections here lack legal foundation and factual support, are applied uniformly without interrogatory-specific justification, and are especially disfavored as applied to Judicial Council form interrogatories requesting basic party and business-entity information.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-Compliant responses to FROGS 1.1 and 3.1-3.7 within 30 days of today.

J. The Court GRANTS the Motion to Compel Further Responses to FROGS Nos. 4.1 and 17.1.

FROG 4.1 asks: At the time of the INCIDENT, was there in effect any policy of insurance through which you were or might be insured in any manner (for example, primary, pro-rata, or excess liability coverage or medical expense coverage) for the damages, claims, or actions that have arisen out of the INCIDENT? The interrogatory seeks identification of insurer identity, policy type, policy limits, name of insured, policy number, insurer address, policy period, and any dispute over coverage.

Defendant contends FROG 4.1 is ambiguous as to incident, policy and other terms that are not properly defined. However, FROG 4.1 is a Judicial Council form interrogatory with defined terms. INCIDENT is a capitalized built-in form term, and the DISC-001 scheme treats capitalized terms as defined terms. (C.C.P. § 2030.060(d).) Defendant has not identified any specific defect in the form definition itself; the objection is only that the term is undefined. A bare vagueness objection to a capitalized defined term is not tenable where the approved form supplies the operative definition. Discovery objections lacking legal merit, including contrived vagueness objections, are misuse of the discovery process. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.)

Nor does Defendant explain how policy is ambiguous in this context, where the interrogatory itself narrows the inquiry to insurance through which Defendant was or might be insured for claims arising out of the incident. The vagueness objection should be overruled.

Defendant also asserts a privacy objection. However, insurance information is expressly discoverable under Code of Civil Procedure section 2017.210. Defendant's showing is conclusory. It identifies no concrete serious invasion from disclosing the existence and basic terms of liability coverage responsive to a statutory insurance interrogatory, and no fact-specific explanation of why the requested information creates more than an ordinary privacy concern.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-Compliant responses to FROG 4.1 within 30 days of today.

FROG 17.1 asks: Is your response to each request for admission served with these interrogatories an unqualified admission? For each non-admission response, the interrogatory requires: (a) the number of the request; (b) all facts upon which the response is based; (c) names, addresses, and telephone numbers of all persons with knowledge of those facts; and (d) identification of all documents and tangible things supporting the response.

Defendant's position is that FROG 17.1 is an improper shotgun interrogatory because the interrogatory requires the responding party to reference other responses and is not full and complete unto itself.

That objection is not legally available against an officially approved Judicial Council form. Code of Civil Procedure section 2030.060(d) contains the carve-out for approved forms by its own terms. (C.C.P. § 2030.060(d).) The most direct authority, *Clement*, treats the same sort of cross-reference objection to an approved form as inapposite and frivolous. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277.) *West Pico* does not alter that conclusion. Its admonition that this type of interrogatory should be avoided arose in 1961, long before the modern form-interrogatory approval regime, and addressed specially drafted interrogatories in a different statutory environment. Under the current scheme, FROG 17.1's cross-reference structure has been affirmatively sanctioned through Judicial Council approval, so *West Pico* has no operative force against it in this context. (*Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants* (2007) 148 Cal.App.4th 390.)

FROG 17.1 is a Judicial Council-approved form interrogatory designed specifically to ask for facts, witnesses, and documents supporting denials to requests for admission. It is a standard interrogatory used in modern practice after RFAs have been served. Defendant's citation to *West Pico*, a 1961 decision predating the modern Judicial Council form interrogatories, does not support invalidating a currently approved form interrogatory. The Court rejects Defendant's shotgun objection on the merits.

Accordingly, the Motion is **GRANTED** Defendant is **ORDERED** to provide Code-

Compliant responses to FROG 17.1 within 30 days of today.

K. Defendant's Privacy & Privilege Objections are Overruled.

When an interrogatory objection is based on privilege, the specific ground must be clearly stated in the response. (Code Civ. Proc., § 2030.240, subd. (b).) Code of Civil Procedure section 2030.240(b) requires that the specific ground for a privilege or work-product objection be clearly set forth in the response. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) The objecting party bears the burden of showing that the withheld information falls within the asserted privilege and, once a motion to compel is filed, must justify the objection with an adequate factual showing. (*Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.) If the resisting party offers no supporting evidence, it has not carried that burden. (*Id.*) A bare invocation of privacy or privilege without supporting factual information or a privilege log is insufficient. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.)

Constitutional privacy and evidentiary privilege are distinct doctrines. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) If constitutional privacy is invoked, the resisting party must first establish a legally protected privacy interest, a reasonable expectation of privacy, and a serious invasion before any balancing occurs. (*Id.*; *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.)

The privacy interest in contact-information discovery belongs to natural persons, not to an LLC as such. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Even where business entities have some privacy zone, it is not constitutionally protected in the same manner as an individual's Article I, Section 1 interest. (*SCC Acquisitions v. Super. Ct.* (Cal. Ct. App. 2016) (unpublished).)

Contact information is on the lower-sensitivity end of the privacy spectrum, so total nonresponse is ordinarily not justified where narrower means can address any legitimate concern. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.) If only part of an interrogatory is objectionable, the remainder must be answered. (§ 2030.240(a).)

In this case, Defendant's assertion of a privacy and privilege objection across the full set of FROGs is fundamentally defective. The objection as phrased states: Invades Privacy Privilege, RESPONDING PARTY'S contact information is protected private data under the California Constitution, as well as statutes, regulations, and cases that interpret the same. But that conflates constitutional privacy with evidentiary privilege—they are not the same thing and the response never identifies which lane actually applies to any interrogatory. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) The privacy/privilege objection was asserted as part of a uniform objection block applied to every interrogatory without differentiation.

Under Code of Civil Procedure section 2030.240(b), that lack of identification and particularity is insufficient on its face. (C.C.P. § 2030.240(b).) Section 2030.240(b) requires that the specific ground for a privilege or work-product objection be clearly set

forth in the response. (*Coy v. Superior Court* (Cal. 1962) 23 Cal.Rptr. 393.) A bare invocation of privacy or privilege without supporting factual information or adequate explanation is insufficient. (*Id.*)

Here, Defendant's objection is not interrogatory specific. It does not explain which particular interrogatories implicate contact information or why any asserted privacy interest outweighs Plaintiff's discovery rights. The objection provides no factual basis for the privacy claim. It does not explain what entity or individual privacy is being protected, whether the information is already public, whether Defendant is an LLC (a business entity) or an individual, or whether less intrusive alternatives such as redaction or a protective order would address any legitimate concern.

While Defendant's Opposition recites the *Hill/Williams* balancing framework in abstract terms, Defendant provides no factual showing of a specific legally protected privacy interest, no identification of which interrogatory subparts implicate contact data versus other information, no discussion of a protective order or partial response, no privilege log, and no identification of any specific evidentiary privilege beyond the constitutional privacy invocation.

Under the burden-allocation rules, that silence is legally consequential. Defendant was required to justify the objection; the court should not supply a missing privacy showing or invent a privilege theory for it. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531; *Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.) If the resisting party offers no supporting evidence, it has not carried that burden. (*Best Prods., Inc. v. Superior Court* (2004) 119 Cal.App.4th 1181.)

As to whose privacy is being asserted: the responses were served by Ho Enterprises, LLC, and the disputed language claims protection for RESPONDING PARTY'S contact information. If the objection is asserted on behalf of the LLC itself, it fails at the outset because the Article I, Section 1 framework protects natural-person privacy interests, not an LLC's own business identity or contact information. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69; *SCC Acquisitions v. Super. Ct.* (Cal. Ct. App. 2016) (unpublished).)

As to FROG 1.1: The interrogatory seeks the name, ADDRESS, telephone number, and relationship to you of each PERSON who prepared or assisted in the preparation of the responses to these interrogatories. Defendant's Separate Statement 4:24-28. The only potentially privacy-implicating pieces are addresses and telephone numbers of natural persons. Even there, Defendant does not identify whether the preparers were attorneys, staff, members, employees, or other persons, does not identify any privilege theory as to their identities, and does not explain why a partial response could not provide names and relationships while withholding personal contact details subject to a protective order if warranted.

Defendant may not withhold disclosure of the identity of the persons who prepared the responses or their relationship to the party, nor may it withhold all substantive information. While Defendant may have a privacy concern regarding personal addresses

or personal telephone numbers of individuals, Defendant cannot withhold the names and professional relationships of those persons to Ho Enterprises itself. Disclosure of who prepared a business entity's interrogatory responses is not a constitutionally protected privacy matter. Contact information is on the lower-sensitivity end of the privacy spectrum, so total nonresponse is ordinarily not justified where narrower means can address any legitimate concern. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.) If only part of an interrogatory is objectionable, the remainder must be answered. (§ 2030.240(a).)

As to FROGs 3.1–3.7: These interrogatories principally seek business-entity identifying information. They seek basic organizational information about Ho Enterprises such as the LLC's name, articles of organization, principal place of business, and corporate status. This is not personal contact information and does not implicate privacy rights. It is typically public information maintained with the California Secretary of State. Even without deciding every possible public-record nuance, information already filed with public agencies and publicly accessible does not support a showing of a serious invasion of a legally protected constitutional privacy interest. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.)

As to FROG 4.1: The privacy objection was addressed above and is overruled.

As to FROG 17.1: The interrogatory does implicate a cognizable privacy interest of natural persons in their personal contact information, but only if Defendant identifies whose privacy is at stake and makes the threshold showing required by the constitutional privacy doctrine. (*Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531.) Defendant did not do so. Because names, addresses, and telephone numbers are lower-sensitivity information, total nonresponse is not the proper remedy even where some privacy interest exists; narrower measures such as a protective order, confidentiality designation, or a partial response would be the proper course. (*Tien v. Superior Court* (2006) 139 Cal.App.4th 528, 532.)

Accordingly, Defendant's privacy/privilege objections are overruled as to FROGs 1.1, 3.1–3.7, 4.1, and 17.1.

L. Plaintiff's Sanctions Request is GRANTED But At Lower Amount; Defendant's Sanctions Request is DENIED.

Code of Civil Procedure section 2030.300(d) mandates that the court impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further interrogatory responses, unless the court finds that the losing party acted with substantial justification or that other circumstances make imposition of the sanction unjust. § 2030.300(c) *id.* § 2030.300(a). The shall impose language is mandatory, not discretionary, absent one of those two statutory safety valves. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.)

Sanctions under the discovery statutes follow the result on the motion unless the losing party acted with substantial justification or other circumstances make sanctions

unjust. (§ 2030.300(d).) Any amount awarded must reflect reasonable expenses actually and proportionately incurred.

Any sanctions request, whether made in a notice of motion or in opposition papers, must identify every person, party, and attorney against whom sanctions are sought and specify the type of sanction sought, and a monetary request must be supported by facts showing the amount sought. (Code Civ. Proc., § 2023.040.) The moving party requesting sanctions must provide notice of the request in accordance with Code of Civil Procedure section 2023.040.

Counsel's declaration may by itself support a fee award if it states the reasonable hourly rate, the hours worked, and the tasks performed; billing records and outside market evidence are not required. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.) A bare attack on the rate, without counter-evidence, does not compel denial, though the court retains discretion to reduce an excessive or inadequately supported rate. (*Id.*)

If sanctions are to be imposed personally on counsel, the record must support a conduct-based finding that counsel advised or directed the offending discovery conduct; personal sanctions are not automatic merely because counsel represented the losing party. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 763.)

Here, Plaintiff's section 2023.040 notice is sufficient because Plaintiff expressly sought monetary sanctions in the amount of \$5,260.00 against Defendant Ho Enterprises, LLC and its counsel of record, Ted Broomfield, Esq., jointly and severally. That identifies each target by name, specifies monetary sanctions as the type sought, and states the amount.

Moreover, here Defendant is the unsuccessful opposing party because the Motion has been granted on the merits. Ho Enterprises' objections lacked legal foundation and were not supported by request-specific facts. (C.C.P. § 2030.300(a).) Defendant's across-the-board refusal to provide any substantive response pending demurrer violated Code of Civil Procedure section 2017.010 and was contrary to the rule in *Williams v. Superior Court of L. A. Cnty.* (2017) 3 Cal.5th 531. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69; § 2017.010.)

Defendant's demurrer-based-let's-delay-discovery theory is not substantial justification on this record. A pending demurrer does not itself authorize withholding interrogatory answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) Nor does Defendant's estimate that responding would cost more than \$5,000 establish substantial justification here, because the showing is thin and conclusory; the record gives only a generalized cost assertion, not a particularized evidentiary explanation of burden by interrogatory or category of information. (*Deck v. Developers Inv. Co., Inc.* (2023) 89 Cal.App.5th 808.)

The record shows that Defendant served objection-only responses to Form Interrogatories 1.1, 3.1–3.7, 4.1, and 17.1, with no substantive answers to any

interrogatory. p:cb1b7bf4 Defendant's responses also expressly conditioned substantive responses on a future pleading event. p:od9c7a59 The overall posture was to withhold all substantive answers and defer to a future event that might never occur.

That said, in the broad exercise of its discretion, the Court also finds that Plaintiff's own conduct materially affects the *reasonable amount* of sanctions that the Court will award against Defendant here. As described in detail above, Plaintiff's meet-and-confer efforts in this case were quite poor. Plaintiff sent only two emails, seventeen and thirty-five minutes after receiving the responses. Neither email identified any specific interrogatory, objection, or defect; neither sought informal resolution without court intervention, the second threatened a motion and sanctions within a week, and Plaintiff never requested a telephone, video, or in-person conference. Under Code of Civil Procedure section 2016.040, a meet and confer must reflect a reasonable and good-faith attempt to resolve each issue informally. (§ 2016.040(a).) On this record, Plaintiff's effort was poor.

Additionally, Plaintiff never responded to defense counsel's July 24, 2026, email offering to stipulate in writing that defendants would serve substantive responses within thirty days after defendants file an answer, if the January 6, 2027 demurrer is overruled or leave to amend is granted and defendants elect to answer. Although that offer itself represented continued refusal to provide immediate responses—a legally improper position—it showed willingness to resolve the dispute without court intervention. Plaintiff's failure to engage reduced any claim of necessity for fee recovery.

The question is how Plaintiff's deficient meet-and-confer affects sanctions against Defendant. It does not retroactively create substantial justification for Defendant's objection-only responses, because Defendant still lacked a legally sufficient basis to withhold all substantive answers. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) But it qualifies as an-other circumstance rendering a full sanctions award against Defendant inappropriate in the eyes of the Court, because Plaintiff moved quickly without engaging the issue-specific dialogue the statute and case law contemplate. (§ 2030.300(c).)

Regarding the specific amount of sanctions that Plaintiffs seeks and the specific amount that the Court will award under these circumstances, Plaintiff counsel's supporting declaration states Plaintiff's counsel has practiced since 1989, is an ABOTA member, charges \$650 per hour, spent five hours on research, writing, and exhibits, anticipates three more hours for opposition, reply, and hearing, and seeks a \$60 filing fee, for a total of \$5,260. The arithmetic is correct: eight hours at \$650 is \$5,200, plus \$60 equals \$5,260. To be sure, Counsel's Declaration may by itself support a fee award if it states the reasonable hourly rate, the hours worked, and the tasks performed; billing records and outside market evidence are not required. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.)

However, the Court need not accept \$650 per hour rate sought in full, or the number of 8 hours sought in full, on this record. Counsel offered experience credentials but no additional market support; three of the eight hours were only estimated when the

motion was filed; and Plaintiff's own deficient meet-and-confer reduced the amount of reasonable motion work that should be shifted. A bare attack on the rate, without counter-evidence, does not compel denial, though the Court retains broad discretion to reduce an excessive or inadequately supported rate. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1315.)

Furthermore, Plaintiff did not engage with Defendant's post-response and post-filing settlement proposals. Although those offers themselves represented continued refusal to provide immediate responses—a legally improper position—they showed willingness to resolve the dispute without court intervention. Plaintiff's failure to engage reduced any claim of necessity for fee recovery.

Balancing all these factors: (1) Defendant lost the motion on the merits and its position lacked substantial justification; (2) Plaintiff's deficient meet-and-confer and failure to engage in subsequent proposals; and (3) concerns about the fee calculation and amount claimed, the Court finds and awards reasonable sanctions to Plaintiff in the amount of **\$2,750.00**. This reflects the work the Plaintiff's counsel necessarily incurred to move against boilerplate responses that should not have been served, while accounting for Plaintiff's own procedural shortcomings that contributed to the need for court intervention.

Moreover, the Court rules that this total amount of sanctions awarded her of \$2,750.00 is awarded in favor of Plaintiff and against Defendant and his attorney Broomfield, jointly and severally. This record supports awarding sanctions against attorney Broomfield. The deficient responses themselves use counsel-driven legal objections, express a let's-delay-discovery-because-a-demurrer-was-filed theory; moreover, Defendant's Opposition and declaration show Broomfield defended and proposed the delayed-response approach as the operative discovery position. That suffices for a conduct-based finding that attorney Broomfield advised or directed the offending discovery conduct. (*Agnone v. Agnone* (2025) 111 Cal.App.5th 758, 763.) Joint and several sanctions against Ho Enterprises and attorney Broomfield are therefore supported because Defendant is the unsuccessful opposing side.

Accordingly, the Court **GRANTS** Plaintiff's Motion for monetary sanctions. Specifically, the Court **AWARDS** monetary sanctions to Plaintiff and against Defendant Ho Enterprises, LLC and its attorney Ted Broomfield, jointly and severally, in the amount in the amount of **\$2,750.00**, to be paid within thirty days of today to Plaintiff.

Regarding Defendant's competing sanctions request that Plaintiff Gerber J. Flores Marquez and his attorney, RJ Molligan, pay to Defendant Ho Enterprises LLC the reasonable attorney fees and costs of their Opposition in the amount of \$4,710.12 under Code of Civil Procedure sections 2030.300(d) and 2023.030, that request is unfounded. Defendant lost the Motion on the merits; its blanket objections to interrogatory responses were legally untenable and factually unsupported. The across-the-board refusal to provide responses pending demurrer lacks substantial justification. (*Williams v. Superior Court of L. A. Cnty.* (Cal. 2017) 398 P.3d 69.) While Plaintiff's meet-and-confer efforts were inadequate, that deficiency does not supply Defendant with substantial justification for its

own illegal position.

Accordingly, Defendant's request for sanctions against Plaintiff is **DENIED**.

III. Conclusion & Order

For the foregoing reasons, **IT IS HEREBY ORDERED**:

- Plaintiff's Amended Motion to Compel Defendant Ho Enterprises, LLC to Provide Further Responses to Plaintiff's Form Interrogatories, Set One, is **GRANTED**.
- Defendant Ho Enterprises, LLC shall serve verified, Code-Compliant substantive further responses to Form Interrogatories-General, Set One, interrogatories 1.1, 3.1-3.7, 4.1, and 17.1, within thirty (30) days of today.
- These further responses shall be without the blanket privacy, privilege, prematurity, vagueness, relevance, burden, harassment, settlement-pressure, and improper-shotgun objections asserted in Defendant's June 18, 2026 responses.
- Monetary sanctions are awarded to Plaintiff in the amount of \$2,750.00, jointly and severally against Defendant Ho Enterprises, LLC and its counsel Ted Broomfield, Esq., to be paid to Plaintiff within thirty days of today.
- Defendant's request to continue the hearing to February 22, 2027, is **DENIED**.
- Defendant's request for sanctions of \$4,710.12 is **DENIED** in its entirety.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 8

Case Name: *Angel Solorio Lomeli v. Angela Yuliana Solorio, et al.*

Case No.: 22CV404566

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff Angel Solorio Lomeli (“Plaintiff”) moves under Code of Civil Procedure 473 for discretionary relief from the Order filed on August 14, 2025. Notice of Motion (the “Motion”) at 1:21-23.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background and Procedural History

This action arises from a property dispute between Plaintiff Angel Lomeli and his daughter, Defendant Angela Solorio, concerning real property located at 38760 Dinosaur Point Road in Hollister, California. Plaintiff asserts causes of action for Constructive Trust, Accounting, and Fraud and Deceit against his daughter for refusing to reconvey a property that Plaintiff granted to her pursuant to a deed recorded on October 25, 2019.

Plaintiff filed this action on September 19, 2022, and filed his operative Third Amended Complaint on December 5, 2024. On April 29, 2025, Defendant filed a Motion for Judgment on the Pleadings on the ground that the First Cause of Action for Imposition of Constructive Trust and Accounting failed as the Third Amended Complaint did not state any underlying cause of action which is a necessary predicate for such relief, and that the Second through Sixth Causes of Action for Fraud and Deceit were meritless as they were based on privileged testimony given by Solorio in a restraining order case against her father and Plaintiff did not allege that he relied on the testimony or was damaged thereby.

Plaintiff did not file any Opposition to the Motion for Judgment on the Pleadings, and Defendant filed a Notice of Non-Opposition to Motion for Judgment on the Pleadings on July 31, 2025. On Friday, August 8, 2025, at 9:00 a.m. in Department 16, Defendant’s Motion for Judgment on the Pleadings was heard before the Honorable Roberta Hayashi. Counsel of record for both Parties were present. The Court was informed that Plaintiff’s counsel had intended to appear on behalf of Plaintiff to argue why, under Code of Civil Procedure 473(b) either the motion for judgment on the pleadings should not be granted, or leave to amend should be allowed, but that Plaintiff’s counsel was temporarily precluded from appearing before the Court to make such argument. (Order 1:20-24) (filed: August 14, 2025).

After full consideration of the evidence, authorities and arguments made by moving party, and no written opposition being filed thereto, on August 7, 2025, the Court posted its tentative ruling. The court adopted its tentative ruling on August 8, 2025, and issued its order dated August 12, 2025, which was filed on August 14, 2025, granting Defendant's Motion for Judgment on the Pleadings in favor of Defendant without leave to amend. (*Id.* 2:7-8). Leave to amend was denied as there is no showing made by Plaintiff as to how the Complaint may be amended to state a viable cause of action against Defendant. (*Id.* 1:26-28.)

On October 10, 2025, Plaintiff filed his first Motion for Relief from the August 14, 2025 Order Granting Motion for Judgment on the Pleadings, seeking *mandatory* relief under the attorney-fault provision of Code of Civil Procedure section 473, subdivision (b). At the November 14, 2025 hearing, the sole ground raised in Plaintiff's Motion was under the mandatory-relief provision of Section 473(b).

During oral argument at the November 14, 2025 hearing, Plaintiff's counsel not only admitted that the Motion was brought only on the ground of the mandatory-relief provision but also that the Motion on this ground fails for the reasons set forth in this Order. Yet during oral argument Plaintiff's counsel also argued for the first time that the Court should grant relief under Section 473(b)'s *discretionary*-relief provision. The Court, in an abundance of fairness, granted Plaintiff leave to file a new motion within 30 days that addresses only this point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b). Order at p. 3, fn. 1, lines 24-25 (filed: Nov. 14, 2025).

The current motion for discretionary relief was filed on December 23, 2025. Plaintiff moves for discretionary relief from the Order filed on August 14, 2025 pursuant to Code of Civil Procedure Section 473. (Motion 1:20-23.) Defendant opposes, arguing that the Court lacks jurisdiction to consider the second Motion for Relief under Code of Civil Procedure section 1008 as Plaintiff does not show new or different facts, circumstances, or law. (Mem. in Opp'n 1:17-25.) Defendant also contends the motion fails to establish that Attorney Robert J. Tennant's failure to file an Opposition to Defendant's Motion for Judgment on the Pleadings was the result of mistake, inadvertence, surprise, or excusable neglect, such that relief under Code of Civil Procedure section 473 is warranted. (Mem. in Opp'n 1:17-25.)

II. Governing Legal Standards

A court may relieve a party from an order taken through mistake, inadvertence, surprise, or excusable neglect, if the application is made within six months and is accompanied by the proposed pleading or response. (C.C.P. § 473(b)) The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Section 473(b) is remedial and is liberally construed. (*Id.*) Excusability remains an

objective inquiry. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) Conduct falling below the professional standard of care is not excusable merely because it is labeled mistake or neglect. (*Id.*)

Section 1008(e) provides that it applies to all applications to reconsider an order or to renew a previous motion, and that no such application may be considered unless made according to that section. (C.C.P. § 1008(e).) Section 1008(b) permits a subsequent application for the same order only upon new or different facts, circumstances, or law, shown by affidavit identifying the prior application and the asserted new matter. (*Id.*) The central inquiry under section 1008(b) is whether the later motion seeks the same order in substance, not whether it uses a different label or theory. (*Ron Burns Constr. Co., Inc. v. Moore* (2010) 184 Cal.App.4th 637, 638.) The California Supreme Court has established that sections 473(b) and 1008 do not conflict, that section 1008 governs renewed applications under section 473(b), and that the court lacks authority to consider a noncompliant renewal. (*Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.)

The mandatory and discretionary provisions of section 473(b) are legally distinct, with different scope, elements, and consequences. (*Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) A motion invoking one prong does not automatically place the other prong before the court. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119.)

III. Analysis of the Motion for Discretionary Relief

Issue 1: Section 1008 does not bar the second Section 473 motion here.

The Court must first determine whether Code of Civil Procedure section 1008 bars consideration of Plaintiff's second motion for relief under section 473(b). Defendant contends that Plaintiff's motion for relief filed on December 23, 2025 sets forth the exact same factual arguments that were presented in Plaintiff's first Motion for Relief filed on October 10, 2025, and that Plaintiff has not complied with the requirements of Code of Civil Procedure section 1008. (Mem. in Opp'n 3:23-28 & 5:3-12.) Defendant argues that the second Motion for Relief does not present any new or different facts, circumstances, or law, and therefore the Court lacks jurisdiction to consider it. (Mem. in Opp'n 5:3-12.) Plaintiff responds that Plaintiff's current motion is not a motion that asks the Court to reconsider anything and therefore it is not required to contain any new or different facts, circumstances, or law. (Plaintiff's Reply in Support 2:10-14.) Plaintiff asserts that the two motions arise under two totally separate and distinct sections of CCP section 473. (Pl.'s Reply in Supp. 2:10-14.) Plaintiff further contends that the current Motion addresses only the point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b). (Pl.'s Reply in Supp. 2:15-20.)

The Court finds that Plaintiff's second motion is a renewed application for the same order within the meaning of section 1008(b), because both motions seek relief from the same August 14, 2025, order. (Order 1:20-24.) Under the substance-over-label approach established by controlling authority, the central inquiry is whether the later motion seeks

the same order in substance, not whether it uses a different label or theory. (*Ron Burns Constr. Co., Inc. v. Moore* (2010) 184 Cal.App.4th 637, 638.) Both motions seek to undo the effect of the August 14, 2025 order granting judgment on the pleadings without leave to amend, and therefore both seek the same relief notwithstanding their different statutory grounds.

But Section 1008(b) bars only a renewed request that lacks new or different facts, circumstances, or law. On the factual record, Plaintiff’s motion for relief filed on December 23, 2025, sets forth the exact same factual arguments that were presented in Plaintiff’s first Motion for Relief filed on October 10, 2025. (Mem. in Opp’n 3:23-28.) The underlying narrative is the same in both motions: Plaintiff again relies on the calendaring error, opposing counsel informing Attorney Tennant that the State Bar website showed him suspended, and Tennant’s administrative suspension at the date and time of the hearing. (Decl. of Robert J. Tennant ¶ 4; Mem. in Opp’n 3:23-28.) The record therefore does not show new or different facts.

On the legal question, however, the Court finds that Plaintiff has satisfied section 1008(b). The first motion sought only mandatory relief, and the court’s November 14, 2025, ruling did not adjudicate discretionary relief; instead, the Court gave Plaintiff 30 days to provide supplemental pleadings in support of his request for discretionary relief pursuant to CCP section 473. (Decl. of Robert J. Tennant ¶ 6.) Because the two prongs are doctrinally distinct and a motion under one does not automatically invoke the other, a ruling on the mandatory prong does not by itself decide the discretionary prong. (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119.)

Plaintiff’s second motion (i.e., the current Motion) is not merely a reargument that mandatory relief should have been granted; it advances a separate legal basis requiring a different showing, namely, *discretionary* relief based on excusable neglect under a different part of section 473(b). (*Martin Potts & Assocs., Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.) The California Supreme Court has established that section 1008 applies to renewed section 473 motions, but the shift from a motion that sought only mandatory relief to one that seeks only discretionary relief presents new or different law under section 1008(b), especially where the Court expressly recognized that the discretionary prong had not yet been adjudicated and invited supplemental briefing on that specific ground. (Decl. of Robert J. Tennant ¶ 6; *Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 833.)

Accordingly, the court rejects Defendant’s jurisdictional challenge under Code of Civil Procedure section 1008. The shift from mandatory relief to discretionary relief, coupled with this court’s November 14, 2025 Order expressly authorizing supplemental briefing on the discretionary-relief ground,⁸ constitutes new or different law sufficient to

⁸ (Order at p. 3, fn. 1, lines 24-25 [“the Court, in an abundance of fairness, GRANTS Plaintiff LEAVE to file a new motion within 30 days from today that addresses only this point of whether the Court should grant Plaintiff Relief from the August 14, 2025 Order based on the discretionary-relief provision of Section 473(b).”] (filed: Nov. 14, 2025).

permit consideration of this second motion under section 1008(b).

Issue 2: Calendaring error does *not* constitute excusable neglect here.

The Court now turns to the merits of Plaintiff's request for discretionary relief. Plaintiff contends that Attorney Tennant mistakenly and erroneously believed that Defendant's Motion for Judgment on the Pleadings was originally set for late August, 2025 as the result of a calendar error. (Decl. of Robert J. Tennant ¶ 4.) When he checked his calendar in the middle of the first week in August, he realized his mistake and that the hearing was actually set for the following Friday, August 8, 2025. (*Id.*) Tennant immediately started to prepare a tardy response based on his mistake regarding the hearing's actual date. (*Id.*)

On the same day Tennant discovered the calendaring error, Seth W. Weiner, Defendant's attorney of record, telephoned Tennant and suggested that Tennant might have a problem appearing at the August 8, 2025 hearing because the California State Bar's web page indicated that Tennant was currently suspended from the practice of law. (Decl. of Robert J. Tennant ¶ 4.) The next day when Tennant contacted the State Bar, they told him he was on administrative suspension because he had not provided the balance in his trust account as of December 31, 2024, and because he had not confirmed with the State Bar that his contact information that they had for him was correct. (*Id.*) Tennant, at the time, had no knowledge of his duty to do either. (*Id.*) Tennant immediately provided the State Bar with the balance in his trust account as of December 31, 2024, and provided the State Bar with confirmation as to his contact information, and paid the approximate \$1,000 in fees to the State Bar that was owed for his failure to comply with the State Bar's request that he had no knowledge of. (*Id.*)

At the date and time of the hearing on August 8, 2025, Tennant was still on administrative suspension and was unable to legally file a timely response to oppose the Motion for Judgment on the Pleadings. (Decl. of Robert J. Tennant ¶ 4.) No Response was ever filed by Plaintiff before the hearing. (*Id.* ¶ 1.)

Plaintiff argues that the calendar error, which was solely and proximately caused by Tennant, ultimately resulted in the failure to file a response because that calendar error so reduced the time in which Tennant learned of his suspension and the date of hearing, that it was rendered impossible to get another attorney to file a response before the hearing, and Tennant's administrative suspension rendered it both impossible and unlawful for Tennant to file a response before the hearing. (Pl.'s Reply in Supp. 4:3.)

In Opposition, Defendant argues that the calendar error by Plaintiff's counsel does not provide grounds for discretionary relief under Code of Civil Procedure section 473. (Mem. in Opp'n 5:16-27.)

The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) Mis-calendaring a hearing ordinarily does not satisfy that standard, especially where no opposition was filed and relief was sought

only on the eve of the hearing. (*HUH v. Wang* (2008) 158 Cal.App.4th 1406.) A calendaring error standing alone does not automatically satisfy section 473(b); the court evaluates the totality of circumstances, including the nature of the error and counsel's diligence after discovering it. (*HUH v. Wang* (2008) 158 Cal.App.4th 1406.)

Attorney Tennant's facts align materially with the line of precedent that finds calendaring errors *non-excusable*. No Response was ever filed by Plaintiff before the hearing, and the realization came only days before the hearing date. Attorney Tennant's Declaration does not explain how the noticed hearing date was mis-read, mis-entered, or left uncorrected, and it does not identify any office practice or clerical mishap that would permit the court to find the mistake was one a reasonably prudent attorney might have made. Under the reasonably prudent attorney standard, a pure calendaring mistake of this sort is not excusable simply because counsel moved quickly after finally discovering it. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Where relief is sought because counsel was suspended, the client must show due diligence upon discovering the attorney's improper conduct, and a self-caused suspension does not itself establish excusable neglect. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 732.) An attorney's ignorance of his own professional obligations is not excusable if it reflects a failure to meet the standard of a reasonably prudent attorney. (*Henderson v. Pac. Gas & Elec. Co.* (2010) 187 Cal.App.4th 215.) Suspension-related inability to act does not itself compel discretionary relief where the underlying inability stems from counsel's own inattention or failure to understand obligations bearing on the representation. (*J.A.T. Entertainment, Inc. v. Reed* (1998) 62 Cal.App.4th 1485, 1491.)

The suspension was administratively self-caused by Tennant's own noncompliance with State Bar obligations. Even taking Tennant's Declaration at face value as evidence of his subjective lack of knowledge, that does not convert the suspension into legally excusable neglect. Under controlling authority, an attorney's ignorance of his own professional obligations is not excusable if it reflects a failure to meet the standard of a reasonably prudent attorney. (*Henderson v. Pac. Gas & Elec. Co.* (2010) 187 Cal.App.4th 215.) This record shows Tennant's actions after he learned of the suspension, but it does not show client-side diligence of the kind required by controlling authority. (*Aldrich v. San Fernando Valley Lumber Co.* (1985) 170 Cal.App.3d 725, 732.)

When multiple circumstances combine to produce the failure, the court must evaluate their aggregate weight rather than isolate each factor. (*Noceti v. Whorton* (2014) 224 Cal.App.4th 1062, 1064.) Relief may be supported where compounding circumstances together caused the neglect, even if no single circumstance would be independently dispositive. (*Id.* at p. 1065.)

Plaintiff's strongest argument is that the two events compounded each other in close succession: counsel discovered the calendaring error only in the middle of the first week of August, immediately started to prepare a tardy response, was then informed he was suspended, immediately provided the State Bar with the required information, and nevertheless remained suspended at the hearing. (Decl. of Robert J. Tennant ¶ 4.) Those

facts might support an argument that, once the error was discovered, an unexpected legal disability prevented corrective action before the hearing.

But the combined effect of the two asserted grounds is not greater than the sum of the parts. One ground is non-excusable under the calendaring-error standard; the other is non-excusable under the attorney-suspension standard. Adding the suspension to the calendaring error does not increase the showing of objective reasonableness; it reinforces the inference that counsel fell below the professional standard in more than one respect at the same time. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) One problem is that counsel mis-calendared a noticed hearing date without explaining how. The second is that counsel says he did not know of duties whose noncompliance led to suspension. Considered cumulatively, those points do not resemble one understandable lapse magnified by extraordinary external conditions; they resemble multiple forms of inattention bearing directly on case management and counsel's authority to practice.

The Court recognizes that California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) The Court further recognizes that counsel showed some post-discovery diligence by beginning work immediately and curing the reporting defects promptly, and that Plaintiff submitted a proposed opposition. (Decl. of Robert J. Tennant ¶ 4.) Diligence, a satisfactory excuse, and a showing of a potentially-meritorious position could support relief, *but* the meritorious-position factor does not substitute for an independently-adequate excuse. (*Bae v. T.D. Serv. Co. of Arizona* (2016) 245 Cal.App.4th 89.) Conduct falling below the professional standard of care is not excusable merely because it is labeled mistake or neglect. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Accordingly, the Court **DENIES** Plaintiff's Motion for discretionary relief. Plaintiff has not established excusable neglect under Code of Civil Procedure section 473(b). The calendaring error falls within the category of mistakes that do not satisfy the objective reasonableness standard established by controlling case law, and the administrative suspension was self-caused by counsel's own State Bar reporting defaults and unsupported by the client-diligence showing required by law. The two circumstances together demonstrate simultaneous professional inattention rather than the kind of compounding external circumstances that warrant relief under controlling authority.

Issue 3: Discretionary relief is not appropriate here to restore pleadings.

The Court must now determine whether, notwithstanding the finding that excusable neglect has not been established, the court should nonetheless exercise its discretion under CCP section 473(b) to vacate the August 14, 2025 Order granting judgment on the pleadings without leave to amend, given California's policy favoring resolution on the merits.

Again, the Court recognizes that California policy strongly favors adjudication on the merits, and doubts are resolved in favor of granting relief. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.) And that Section 473(b) statute is remedial and is liberally construed. (*Id.*) *But* in this case Section 473(b) statute requires

that the application be accompanied by an affidavit attesting to mistake, inadvertence, surprise, or excusable neglect. (§ 473.) The test for excusable neglect is whether a reasonably prudent person under the same or similar circumstances might have made the same error. (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249.)

Here, the Court's denial of leave to amend in the August 14, 2025 order rested on a finding that there is no showing made by Plaintiff as to how the Complaint may be amended to state a viable cause of action against Defendant. (Order 1:26-28.) Plaintiff has now submitted a Response to Defendant's Motion for Judgment on the Pleadings that purports to demonstrate how the complaint can be amended to state viable causes of action. (Pl.'s Reply in Supp. 2:14-18.) The Response requests that the Court grant Plaintiff's leave to amend his first cause of action to allege one or more of the above available predicate causes of action justified by the facts of this case that would support a Court's Imposition of the remedy of a Constructive Trust, and requests that the Court grant Plaintiff leave to amend his second through sixth causes of action by alleging Defendant's fraud and deceit in claiming sole ownership of the property after she had agreed to hold the property in trust and to reconvey said property to Plaintiff whenever the equity was needed for the retirement of Plaintiff and his wife. *Id.* 2:3-6 *id.* 2:14-18.

But California's strong policy favoring resolution on the merits does not eliminate the statutory requirement that the moving party establish mistake, inadvertence, surprise, or excusable neglect *as a threshold matter*. The discretionary-relief provision of section 473(b) authorizes the court to relieve a party from an order taken through mistake, inadvertence, surprise, or excusable neglect. (§ 473.) Where the threshold showing of excusable neglect is *not* made—and it has *not* been made here for all the reasons described in detail above—the Court lacks statutory authority to grant relief under section 473(b) regardless of the strength of California's policy favoring adjudication on the merits or the potential merit of the proposed amendments.

Accordingly, the Court declines to exercise its discretion to vacate the August 14, 2025 order granting judgment on the pleadings without leave to amend. Although California policy strongly favors resolution on the merits, the discretionary-relief provision of section 473(b) requires a threshold showing of mistake, inadvertence, surprise, or excusable neglect. Because Plaintiff has not established excusable neglect, the statutory predicate for discretionary relief is not satisfied, and thus it would be inappropriate for the Court to grant relief under section 473(b) here.

Issue 4: Defendant's request for attorneys' fees is denied because relief has *not* been granted to Plaintiff under Section 473(b).

Under the plain text of Section 473(b),⁹ Defendant is not entitled to an award of

⁹ Section 473(b) provides, in pertinent part: "The Court shall, whenever relief is *granted* based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties." C.C.P. § 473(b)

attorneys' fees because that provision authorizes fee awards to opposing counsel only when the Court grants relief—and the Court here has not granted relief to Plaintiff under Section 473(b).

IV. Conclusion & Order

In the exercise of its discretion, the Court **DENIES** Plaintiff's Motion for discretionary relief under Section 473(b).

Specifically, while the Court rejects Defendant's jurisdictional challenge under Code of Civil Procedure section 1008, the Court **DENIES** Plaintiff's Motion for discretionary relief under Code of Civil Procedure section 473(b) on the merits because Plaintiff has not established excusable neglect. Moreover, the Court declines to exercise its discretion to vacate the August 14, 2025 Order because the statutory predicate for discretionary relief under Section 473(b) is not satisfied.

Moreover, the Court **DENIES** Defendant's attorney's fee request under Section 473(b) because the Court has not given Plaintiff any relief under Section 473(b).

Accordingly, the August 14, 2025 Order granting Defendant's Motion for Judgment on the Pleadings without leave to amend remains in full force and effect. Defendant is **ORDERED** to prepare and file a proposed Judgment within 10 days of today.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

(emphasis added). Here, as Plaintiff has *not* been granted relief under Section 473(b), Defendant is not entitled to any award of her attorneys' fees.

Line 9

Case Name: *John Roe 1, et al. v. Doe Entity 1, et al.*

Case No.: 22CV408177

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff John Roe 1 moves under Code of Civil Procedure Sections 379.5 and 1048 for an Order:

1. Severing John Roe 4's claims against Defendant Mountain View Whisman School District (MVWSD") from John Roe 1's claims against MVWSD;
2. Directing the Clerk to assign a separate case number to the severed John Roe 4 action;
3. Retaining the August 24, 2026 trial date for John Roe 1's claims against MVWSD;
4. Providing that John Roe's 4 shall proceed to trial on a later date determined by the Court;
5. Providing that the July 31, 2026 hearing on Pamela M. Carmon's motion to substitute as Plaintiff John Roe 4 shall remain on calendar and that any order granting substitution shall apply in the severed action;
6. Providing that several shall not require duplication of completed discovery, depositions, expert disclosures, or other proceedings;
7. Maintaining in both actions the existing protective order and the separate order permitting Plaintiffs to proceed under Court-authorized pseudonyms; and
8. Granting such other relief as the Court deems just and proper.

Notice of Motion (the "Motion") at 2:3-19 (filed: July 23, 2026).

Pamela M. Carmody, whose Motion on July 31, 2026 the Court granted to substitute as Plaintiff John Roe 4, stipulates, joins, and consents to the relief requested in this Motion. *Id.* at 2:20-22.

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

PROCEDURAL BACKGROUND

This is a case filed way back in 2022 that all parties and all counsel for all parties have long known is going to trial on August 24, 2026, ever since the undersigned Judge told them over nine months ago in its December 12, 2025 Order that this already twice-continued trial is set for August 24, 2026 *and would not be continued further.*

This matter has an extensive procedural history of repeated requests for severance, which the Court finds beyond any doubt is a tactic that these parties have repeatedly tried to use to continue this trial—a tactic that has already failed many times because this Court has consistently rejected these same parties’ repeated applications for severance. For clarity of the record, this procedural history regarding severance requests warrants discussion here.

In its Order filed on December 1, 2025, this Court—after carefully reviewing the extensive *ex parte* application papers brought by Plaintiffs and other parties requesting that this Court sever SCUSD’s claims into separate actions—DENIED that application for severance, explaining: “This case was commenced on December 5, 2022. Trial has long been set for January 20, 2026. Plaintiffs’ dilatory conduct—including but not limited to this 11th-hour application—cannot and do[es] not create an emergency here. Application denied.” Order at 2:24-26 (filed: Dec. 1, 2025).

Not content with their *ex parte application* for severance that the Court DENIED, the parties thought that they could change this Court mind or force this Court’s hand by filing what they styled as a “Stipulation to Sever; To Continue The Trial and all Related Deadlines”—to which they attached a Proposed Order that they evidently expected the Court to rubber stamp because, after all, the parties stipulated to it. But the Court DENIED that stipulated request as well in an Order filed on December 3, 2025, just two days after the Court’s December 1, 2025 Order DENYING their *ex parte* application. As the Court pointed out in this second Order on this same severance issue: “This is a case filed in 2022 that has long been set for trial for January 20, 2026—after it was already continued from August 11, 2025. Counsel’s dilatory actions in making this 11th-hour application do not create an emergency and are not well received. Counsel can bring a motion *in limine with the trial judge* to sever once a trial judge is assigned[.]” Order at 6:26-28 (filed: Dec 3, 2026) (emphasis added).

Having failed to get a continuance through their repeated requests for a severance, these same parties within a week filed another application for a stay, but this time trying a different and more successful tactic: by invoking the statutory requirement that a summary judgment motion be heard at least 30 days before trial. So, separate and apart from the severance requests that the Court had repeatedly denied, the Court granted a continuance of the trial to August 24, 2026 so that SCUSD’s Motion for Summary Judgment could be timely heard on July 17, 2026. Order at 2:7-18 (filed: Dec. 12, 2025). But lest there be left any doubt in their minds on how their future attempts to delay the August 24, 2026 trial would be received, the Court in the bottom line of this December 12, 2025 Order wrote in bold print: “*All parties* are hereby put on Notice that there will be no further continuance of the August 24, 2026 trial date.” Order at 3:17-20 (filed: Dec. 12, 2026) (emphasis added).

Yet now, the day before the trial judge is to be assigned at the Trial Assignment Hearing that the parties have known for over nine months was set for August 20, 2026 in this Court’s December 3, 2025 Order *supra*, Plaintiffs come before this Civil Case Manager by this new Motion demanding severance again—with trial set to start in less than one week on August 24, 2026.

ANALYSIS OF THE MOTION TO SEVER

Plaintiffs bring this Motion under Code of Civil Procedure Sections 379.5 and 1048(b). Pl.'s Mot. to Sever 3:5-10. Moving Plaintiffs argue that Separate trials will avoid prejudice and jury confusion and promote convenience, expedition, and judicial economy. *Id.*

The Court respectfully disagrees and denies severance. In the broad exercise of its discretion, the Court finds that trying these matters separately:

- will not promote convenience,
- will not avoid unfair prejudice, and
- will not make the litigation more efficient and economical.

First, the Court has twice previously denied Plaintiffs relief on their severance requests—in the Court's Orders filed on December 1, 2025, and on December 3, 2025, as discussed in detail above. While Plaintiffs argue that this Motion is procedurally distinct, the fundamental relief sought remains the same: severance.

Second, in the broad exercise of its discretion in light of the over twenty years that the undersigned Judge spent in private practice trying civil actions throughout California and the nation, the Court is not persuaded at all that separate trials will promote convenience or efficiency. Discovery has proceeded in this consolidated matter. Severing the claims at this juncture would not simplify matters but would instead create parallel litigation tracks requiring separate case management and separate jury trials.

And it certainly will *not* be more convenient, efficient, and economical for the dozens and dozens of additional potential jurors would be forced to endure voir dire and jury selection in a *second jury trial* that severance now would trigger—not to mention the even greater burdens and inconveniences on the twelve brave souls selected for the second jury (plus multiple alternate jurors) who would be forced to sit through a second jury trial after jury selection if the Court ordered severance. As a second jury trial means a second jury which means a select jury selection process with a second large panel of potential jurors, any party who argues that severance here would be more convenient and efficient certainly does not have jurors in mind. But this Court does. And so, in the broad exercise of its discretion, the Court declines the “stipulated” invitation to sever.

Third, the Court finds that trying the matters *separately* will not reduce any unfair prejudice. To be sure, Plaintiffs argue that a combined trial would require the jury to evaluate materially different school relationships, alleged perpetrators, witnesses, notice evidence, supervisory duties, and theories of causation Pl.'s Mot. to Sever 5:11-22. But that argument fails because the jury in one trial can and will be properly instructed by the trial judge to evaluate each plaintiff's claims against each defendant separately based on the distinct evidence applicable to each claim.

Fourth, lack of unanimous party consent weighs against severance here. While some parties support severance, self-represented Plaintiff John Roe 2 advised that he would not agree to the stipulation. Pl.'s Mot. to Sever 8:4-7. And John Roe 2 is a party to this action and has not consented to severance.

Fifth, no party can seriously claim the slightest surprise by this Order DENYING this (third) severance request. The Court already denied two applications for severance (*see* Dec. 1, 2025 Order and Dec. 3, 2025 Order *supra*). The third time is not the charm.

And finally, as the Court made crystal clear that “*All parties* are Notice that there will be no further continuance of the August 24, 2026 trial date” back on December 12, 2025 (*see* Dec. 12, 2025 Order *supra*) (emphasis added), *all parties* have been given a full and fair chance to be ready for the August 24, 2026 trial. So there is no prejudice at all by the Court now telling all parties to proceed to trial on August 24, 2026.

ORDER & CONCLUSION

For the foregoing reasons, Plaintiffs John Roe 1 and John Roe 4’s Motion to Sever Claims Against Santa Clara Unified School District Into a Separate Action is **DENIED** without prejudice. The long-set August 24, 2026, at 8:45 AM trial date in Department 18 **REMAINS AS SET** for all parties: Plaintiffs John Roe 1, John Roe 2, John Roe 3, John Roe 4, and John Roe 5 against Defendants Mountain View Whisman School District, Santa Clara Unified School District, and all other named Defendants.

Accordingly, all parties are **ORDERED** to proceed to trial on August 24, 2026.

That said, the undersigned Judge respectfully notes that this Order **DENYING** this Motion is *without prejudice* in the sense that Plaintiffs (and indeed any parties) remain free to make any motion *in limine* requesting this same relief or any relief from the trial judge, who will be assigned at the August 20, 2026 Trial Assignment Hearing, and who will be free to conduct this trial in any manner that the trial judge sees fit.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 10

Case Name: *Iretunde Akinsola, et al. v. John Finister, et al.*

Case No.: 23CV420753

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant and Cross-Complainant Lawrence Wu (“Wu”) moves under Code of Civil Procedure Sections 473(a), 426.50, and 576.5 for leave to file a First Amended Cross-Complaint in order to avoid a forfeiture for a cause of action upon such terms as the Court deems just and proper. Notice of Motion (the “Motion”) at 1:24-2:5 (filed: Dec. 23, 2025).

The Motion came on for hearing on August 19, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. FACTUAL AND PROCEDURAL BACKGROUND

This civil action arises from Plaintiffs’ allegations of mistreatment while they rented and occupied the real property located at 2552 Castleton Way in San Jose. Plaintiffs were tenants of Defendant Trenton Finister. The lease arrangements started in 2021 and were in place when Wu purchased the property at a foreclosure sale in July 2022.

The original Complaint in this action was filed August 11, 2023, naming John Finister, Trenton Finister, and Does 1 through 25; it did not name Wu. The First Amended Complaint was filed December 4, 2024, naming John Finister, Trenton Finister, Lawrence Wu, and Does 1 through 25.

On or about February 26, 2025, Wu filed a general denial to the Plaintiff’s first Amended Complaint, which his counsel says prevented his office from filing a FACC without a court order. Declaration of Defense Counsel Mark K. Oto in Support of Motion (“Oto Decl.”) at ¶ 2 (filed: Dec. 23, 2025).

On April 3, 2025, Wu demurred to the First Amended Complaint and, that same day, filed his original Cross-Complaint naming only Trenton Finister and Roes 1 through 20, inclusive, and seeking only indemnity and contribution.

Plaintiffs filed a Second Amended Complaint on or about September 30, 2025. In order to respond to the SAC, Wu’s counsel conducted research on the various issues involved.

On October 29, 2025, Wu’s counsel tendered Wu’s First Amended Cross-Complaint

to the clerk for electronic filing, along with Wu’s Demurrer to the SAC. Oto. Decl. at ¶ 6. Thereafter, the Wu FACC was rejected due to the prior filing of the general denial. *Id.* Wu’s counsel learned about the rejection upon a check of the Court file on or about November 17, 2025. *Id.*

On November 18, 2025, counsel contacted opposing counsel via email and solicited a stipulation to allow the filing. On December 17, 2025, counsel received a response from Carlos Martinez, counsel for Defendant Finister, indicating that he would stipulate to the Wu FACC. But no agreement was reached or made Plaintiffs’ counsel. Oto. Decl. at ¶ 7.

II. THE PROPOSED AMENDMENT

The proposed First Amended Cross-Complaint (“FACC”) seeks to add Iretunde Akinsola and Toluwalope Ayedegbe as Cross-Defendants alongside Trenton Finister. The proposed pleading retains the first two causes of action for indemnity and contribution against Trenton Finister and *adds* a third cause of action for holdover damages against Akinsola and Ayedegbe.

The proposed FACC alleges that Wu acquired title to the premises via a trustee’s sale of foreclosure on or about June 27, 2022. At the time of the foreclosure sale, Cross-Defendants Akinsola and Ayedegbe resided at the property and occupied the property until December 2022. The proposed FACC alleges that as a result of the foreclosure sale, Akinsola and Ayedegbe became tenants at sufferance and were not entitled to retain possession of the premises, and that Wu did not become their landlord and was not entitled to rent from them. The proposed FACC seeks holdover damages for the period from foreclosure until occupancy ended, alleging fair rental value in the range of \$2,000-\$3,500 per month.

III. LEGAL STANDARD

A. Applicable Statutes

California courts apply a liberal policy favoring amendment of pleadings.

Code of Civil Procedure Section 576 provides: “Any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow amendment of any pleading or pretrial conference order.” C.C.P. § 576.

Section 473(a) provides that the “court may likewise, in its discretion, after notice to the adverse party, allow, upon such terms as may be just, an amendment to any pleading or proceeding in other particulars[.]” C.C.P. § 473(a).

For compulsory cross-complaints, Section 426.50 provides that a “party who fails to plead a cause of action subject to the requirements of the article may apply for leave to amend or file a cross-complaint at any time during the course of the action. The court, after notice to the adverse party, shall grant leave if the party who failed to plead acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action.” C.C.P. § 426.50.

Cal. Rules of Court, rule 3.1324, imposes procedural requirements. Subdivision (a) requires that a copy of the proposed pleading be included with the moving papers and specification of the allegations to be added or deleted. Subdivision (b) requires a declaration showing (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amendment were discovered; and (4) why the request was not made earlier. C.R.C. 3.1324.

B. Recognized Exceptions: Futility and Undue Delay

Despite that liberal policy, leave to amend may be denied on two independent grounds. First, leave to amend may be denied where the proposed amendment is futile because it would be barred by the statute of limitations or fails to state a claim. Second, leave to amend may be denied where the moving party has unreasonably delayed seeking amendment to the prejudice of the opposing party, even if the statute of limitations has not run.

IV. ANALYSIS OF THE MOTION¹⁰

A. The Proposed Amendment is Futile Because It is Barred by the Statute of Limitations

The Court must first determine which statute of limitations applies to Wu's proposed holdover damages claim. Wu contends that Code of Civil Procedure section 319 provides a five-year limitations period for claims arising out of title to real property, or to rents or profits out of the same. In contrast, Plaintiffs contend that section 338(b)'s three-year period for trespass upon or injury to real property governs.

The California Supreme Court in *Wilson v. Bittick* (1965) 63 Cal.2d 30, 35 resolved this question. *Wilson* held: The applicable periods of limitation are three years for an action for trespass upon or injury to real property (Code Civ. Proc., § 338, subd. 2) and five years for an action for mesne profits (Code Civ. Proc., § 336). (*Wilson v. Bittick* (1965) 63 Cal.2d 30, 36.)

The distinction turns on the nature of the claim. Here, Wu seeks damages for wrongful occupation during a specific period (June 2022 through December 2022) by former occupants who have since vacated. Hence, as this is *not* an action for mesne profits incident to an ejectment action—Wu has not sought to eject Plaintiffs, who vacated voluntarily—the three-year period under section 338(b) applies.

For a continuing trespass, the limitations period does not begin to run until the trespass ends. As explained in *Baugh v. Garl* (2006) 137 Cal.App.4th 737, 745: where a

¹⁰ In analyzing this Motion, the Court did consider and give Judicial Notice as Wu and Plaintiffs requested to court records in this case.

trespass is continuing, but not necessarily permanent, the statute does not bar an action until three years after the last act of trespass. (*Baugh v. Garl* (2006) 137 Cal.App.4th 737, 747.) Under Wu's theory, each Plaintiff's alleged wrongful occupation constituted a continuing wrong that ended on her respective move-out date.

Applying the three-year limitations period is straightforward: Plaintiff Akinsola is alleged to have resided at the Property to on or about December 2, 2022, making the limitations deadline December 2, 2025 (three years from December 2, 2022). Plaintiff Ayedegbe is alleged to have resided at the Property to on or about December 13, 2022, making his limitations deadline December 13, 2025 (three years from December 13, 2022). Here, the Motion was electronically filed on December 23, 2025, after both deadlines had passed. Hence, the applicable statute of limitations bars this claim.

B. The Proposed Amendment Does Not Relate Back

Wu requests that the amendment relate back to October 29, 2025, the date of his first attempted filing. Even if granted, this date does not save either claim: counsel tendered the Wu First Amended Cross Complaint to the clerk for electronic filing on or about October 29, 2025, but thereafter, the Wu FACC was rejected because of prior filing of the general denial. Under these circumstances, the rejected filing date provides no relation-back benefit.

The more fundamental question is whether the proposed FACC can relate back to Wu's original Cross-Complaint filed April 3, 2025.

Under the modern rule articulated in *Austin v. Mass. Bonding & Ins.* (1961) 56 Cal.2d 596, 600: an amended complaint will be deemed filed as of the date of the original complaint provided recovery is sought in both pleadings on the same general set of facts. (*Austin v. Mass. Bonding & Ins.* (1961) 56 Cal.2d 596, 600.) This rule reflects a development which, in furtherance of the policy that cases should be decided on their merits, gradually broadened the right of a party to amend a pleading without incurring the bar of the statute of limitations. (*Id.*)

Wu's April 3, 2025, Cross-Complaint named only Trenton Finister and Roes 1 through 20, inclusive, and sought only indemnity and contribution. It did not allege facts concerning Plaintiffs' post-foreclosure occupancy. It did not seek affirmative relief based on that occupancy. It sought only to shift liability that might be imposed on Wu in the main action.

The proposed third cause of action of the FACC, by contrast, asserts an independent claim for affirmative monetary relief against Plaintiffs based on their alleged wrongful occupation between June and December 2022. This is a *different* transaction, a *different* set of operative facts, and a *different* theory of recovery. The original Cross-Complaint's indemnity claims arise from Plaintiffs' allegations in the main action that they were mistreated as tenants. The new holdover claim arises from Wu's assertion that Plaintiffs' post-foreclosure occupancy was wrongful.

In his Reply, Wu stresses that the occupancy of the Plaintiffs in the premises, i.e., the holdover, was acknowledged in the original Cross Complaint. Reply in Support 4:4-15. The Court respectfully disagrees. The Court has carefully reviewed the original Cross-Complaint filed April 3, 2025, which contains no allegations concerning Plaintiffs' post-foreclosure occupancy or any holdover theory. Rather, it alleges only that if Wu is found liable to Plaintiffs on their claims, he is entitled to indemnity and contribution from Trenton Finister.

The proposed amendment that is the FACC does *not* seek recovery on the same general set of facts as the original Cross-Complaint. It adds entirely new parties (Plaintiffs as cross-defendants) and an entirely new cause of action based on facts (post-foreclosure holdover) that were not pleaded in the original cross-complaint. Under settled California law, such an amendment does not relate back. (*Austin v. Mass. Bonding & Ins.* (1961) 56 Cal.2d 596, 600.)

The relation-back doctrine in *Scholes v. Lambirth Trucking Co.* (2017) 10 Cal.App.5th 590 confirms this conclusion. That case held: Unless an amended complaint relates back to a timely filed original complaint, it will be barred by the statute of limitations. (*Scholes v. Lambirth Trucking Co.* (2017) 10 Cal.App.5th 590, 597.) Under the relation-back doctrine, in order to avoid the statute of limitations, the amended complaint must rest on the same general set of facts as the general complaint, refer to the same accident and same injuries as the original complaint, and refer to the same instrumentality as the original complaint. (*Id.* at p. 598.) But the FACC does none of those things.

Here, the original cross-complaint sought indemnity for potential liability to Plaintiffs in the main action. The proposed amendment seeks affirmative holdover damages from Plaintiffs for their post-foreclosure occupancy. These are not the same general set of facts, the same injuries, or the same instrumentality. So the amendment does not relate back.

Because the proposed third cause of action is barred by the three-year statute of limitations under Code of Civil Procedure section 338(b), and because the proposed amendment does not relate back to the original cross-complaint, granting leave to amend would be futile. Accordingly, leave to amend is properly **DENIED** on this ground alone.

C. Wu Has Unduly Delayed Without Adequate Justification

Even if the statute of limitations did not bar the proposed amendment—and it does—the Court would still deny leave to amend on the independent ground of undue delay without adequate justification.

Wu purchased the property via foreclosure sale on or about June 27, 2022. Plaintiffs resided at the property and occupied it until December 2022. Wu has known the relevant facts—his acquisition of the property through foreclosure and Plaintiffs' occupancy through December 2022—from the outset. Wu filed his original cross-complaint on April 3, 2025, naming only Trenton Finister and seeking only indemnity and

contribution.

Yet Wu's counsel admits that Wu did not attempt to assert a holdover claim against Plaintiffs until October 29, 2025. Oto Decl. at ¶¶5-6. That is more than three years after Plaintiffs vacated the property, and more than six months after Wu filed the original cross-complaint.

The only explanation offered is that on approximately October 23, 2025, counsel located the case *Aviel v. Ng* (2008) 161 Cal.App.4th 809, which Wu's lawyer states serves as the basis for Wu to sue the Plaintiffs for holdover damages. Oto Decl. at ¶ 3. Counsel states that at the time of filing the general denial, he did not know or understand that his client might hold claims for holdover damages due to Plaintiff's occupation of the real property involved in the litigation. *Id.* at ¶2.

But that explanation identifies when counsel discovered a legal theory, not when counsel discovered facts giving rise to the claim. The belated discovery of a legal theory that was available from the outset of this litigation does *not* constitute good cause for delay under Rule 3.1324(b).

Moreover, the record reflects that in August 2022, Wu filed an unlawful detainer action concerning *this same Property and this same holdover* in Santa Clara County Superior Court Case No. 22CV403387. Pls.' Memorandum in Opposition to Motion for Leave to Amend at 9:5-7. And, as Plaintiffs' point out, Wu has offered no explanation for why a damages theory concerning the same holder was never raised in 2022, only appearing for the first time in October 2025, nearly three years later. *Id.* at 9:12-14.

In his Reply, Wu contends that Plaintiffs' argument that Wu holds a judgment for the holdover period against Defendant Trenton Finister is incorrect. Wu says that he holds a stipulation for judgment against Trenton Finister for return of the Castleton property and damages. Reply in Supp. 2:1-8. The stipulation is viewed by Wu as non-collectible and hence, has not been reduced to a judgment. *Id.* But whether formally entered as a judgment or not, the stipulation document filed in November 2022 awarded Wu total holdover damages for this same property and time period. So this fact sharply undermines the Wu's argument that his counsel first discovered the holdover damages theory in October 2025.

Also, Wu contends that there would be little prejudice allowing him to file the FACC now because no trial date has been set, trial setting is scheduled for December 2026, and Discovery remains open and no depositions have been taken. Reply in Supp. 3:1-6. But Plaintiffs have already litigated this matter for several years on the understanding that Wu's Cross-Complaint sought only indemnity and contribution from co-defendant Trenton Finister—not an independent monetary claim against Plaintiffs personally. So allowing Wu to inject a new theory of direct liability against Plaintiffs at this late stage, on facts three to four years old, would necessarily require new discovery and cause complications in case management, thereby increasing costs to the parties and imposing additional burdens on the Court.

In sum, Wu has offered no legitimate justification for waiting nearly three years to

assert a claim built entirely on facts he has known since June 2022. This delay is unreasonable and prejudices Plaintiffs. So even if the statute of limitations bar did not exist here (and it does), leave to amend would be properly DENIED on this independent ground as well.

V. CONCLUSION AND ORDER

Wu's Motion for Leave to File the FACC is **DENIED** on two independent grounds:

First, the proposed third cause of action is barred by the three-year statute of limitations under Code of Civil Procedure section 338(b). The limitations period expired on December 2, 2025, as to Plaintiff Akinsola and December 13, 2025, as to Plaintiff Ayedegbe. This Motion was filed December 23, 2025, after both deadlines expired. Moreover, the proposed amendment does not relate back to the original cross-complaint filed April 3, 2025, because it does not seek recovery on the same general set of facts—it adds new parties as cross-defendants and asserts an entirely new cause of action for affirmative relief based on facts not alleged in the original pleading. Under these circumstances, granting leave to amend would be futile.

Second, even if the statute of limitations did not bar the amendment (and it does), leave would be denied based on undue delay without adequate justification. Wu has known the relevant facts since June 2022. In November 2022, a stipulation for entry of judgment in an unlawful detainer action awarded Wu total holdover damages for this same property and time period. Wu provides no adequate explanation for delaying nearly three years to assert this theory against Plaintiffs—and this delay prejudices Plaintiffs who have litigated this case on a different understanding of the claims against them for years.

Accordingly, Wu's Motion for Leave to File the FACC is **DENIED**.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 11

Case Name: *Luc Rebboah v. Darrell P. Zazueta, et al.*

Case No.: 24CV445335

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

The Court has considered the Application for Determination of Good Faith Settlement (the “Application” filed: Oct. 10, 2025) filed by the settling defendants Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta (the “Zazueta Defendants” or “Settling Defendants”), the Opposition (filed: Nov. 4, 2025) of the non-settling defendants JKL Orchard Park Associates and Laura Rodriguez (the “Non-Settling Defendants”) to the Settling Defendants’ Application, *and* the Non-Settling Defendants’ Motion (filed: Dec. 29 2025) to Contest the Settling’ Defendants’ Application. Having reviewed all these papers and their supporting declarations and exhibits and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court **DENIES** the Application **without prejudice** for reasons the Court will now explain.

I. BACKGROUND AND PROCEDURAL HISTORY

This personal injury action arises from a dog-bite incident that occurred on August 26, 2023, at the Orchard Park Apartment Complex located at 5635 Blossom Gardens Circle, San Jose, California (the “Premises”). Plaintiff Luc Rebboah (“Plaintiff”) was bitten by the Zazueta’s family dog (a Rottweiler named Vader, likely after the character from the *Star Wars* saga) while Plaintiff was collecting his mail at the complex where he resided as a tenant (the “August 26, 2023 incident”). Also tenants at this complex were Defendants Darrell Zazueta and Starr Mendoza-Zazueta.

The incident occurred when while Plaintiff was collecting his mail one night, he came across the Zazueta family pet who was accompanied by Defendant Rose Linda Mendoza-Zazueta. According to Plaintiff, while this dog had a leash attached to him, it was not being held but instead was dragging on the ground. The dog bit Plaintiff on the arm.

Plaintiff filed his Complaint on August 16, 2024 against Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, Starr Mendoza Zazueta, JKL Orchard Park Associates dba Orchard Park Apartments, Conam Management Corporation, Laura Rodriguez, and Does 1 to 50.

On September 24, 2024, the Non-Settling Defendants filed a Cross-Complaint against the Zazueta Defendants asserting Express Indemnity, Total Indemnity, Declaratory Relief, and Apportionment of Fault. The Cross-Complaint alleges that at the time of the incident, which is the subject of Plaintiff’s complaint, Cross-Defendant Darrel

Zazueta was contractually bound by the terms of his lease agreement to indemnify and hold harmless Defendant JKL Orchard Park Associates dba Orchard Park Apartments for injury to a person caused by the negligence of the resident or the resident's guests or invitees.

On October 10, 2025, the Zazueta Defendants filed the present Application for Determination of Good Faith Settlement. On November 4, 2025, the Non-Settling Defendants filed their Opposition. On December 29, 2025, the Non-Settling Defendants filed their Motion to Contest the Application.

The Zazueta Defendants have entered into a settlement agreement with Plaintiff under which Plaintiff Luc Rebboah will receive \$100,000.00, which represents the full policy limits available to Settling Defendants under the policy of Renter's Insurance that they had with American National Property and Casualty. The settlement agreement provides that in consideration of the releases and agreements set forth above and, contingent upon the receipt of an Order from the Santa Clara County Superior Court Determining that said settlement is in Good Faith, (the 'Order'), Releasor shall receive \$100,000.00 (ONE HUNDRED THOUSAND DOLLARS AND ZERO CENTS) which shall be paid as through a draft made payable as follows 'Luc Rebboah and Caputo & Van Der Walde LLP.' The agreement was signed by Plaintiff on August 8, 2025. The settlement is contingent upon a good faith settlement determination under CCP Section 877.6 and a dismissal with prejudice of the Cross-Complaint filed by JKL Orchard Park Associates and Laura Rodriguez against the Zazueta Defendants.

II. FACTUAL SUMMARY

A. The Dog's Ownership and Defendants' Knowledge (Actual or Constructive) of its Prior Dangerous Propensities

The record shows that, at all times relevant, the Zazueta Defendants were tenants and residents at the Orchard Park Apartments and were the lawful owners of their family dog, which they kept in their apartment at the premises. Each of the three Zazueta Defendants has declared ownership of this dog. Specifically, Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta each admit that at the time of the subject incident on August 26, 2023, they were one of the owners of the family dog, Vader.

The record reflects that on or about June 13, 2021, this dog was given a warning by San Jose Animal Control for aggressively chasing children off leash at the Premises. In light of that warning, Plaintiff asserts that *all* Defendants (including the Settling *and* Non-Settling Defendants) had actual *or* constructive knowledge of Vader's violent propensities before the August 26, 2023 incident, and that despite this knowledge by all Defendants, the Zazueta's family pet was allowed to continue to reside at the Orchard Park Apartments without any restrictions.

B. Premises Policies and Management Responsibilities

At all relevant times, this apartment complex did have a policy to not allow dog

breeds considered to be aggressive, including Rottweilers, on the Premises. Vader is a Rottweiler. This policy also requires that all dogs be leashed in the public or common areas of the Premises, and requires each tenant who would like to keep an animal on the Premises to enter into an Animal Agreement, in addition to their lease.

C. Plaintiff's Injuries and Treatment

As a result of the August 26, 2023 incident, Plaintiff suffered injury to the body, as well as shock and injury to the nervous system and person, causing great mental, physical and nervous pain and suffering; the injuries could result in some permanent disability. Plaintiff incurred and will continue to incur medical and incidental expenses.

Discovery shows that the Plaintiff has treated through his health insurance with Kaiser Permanente for a diagnosis of Complex Regional Pain Syndrome, Type I in the right upper extremity and has undergone a stellate ganglion nerve block. Plaintiff claims that as of August 28, 2025, he has medical charges of \$12,849.00 through his treatment with Kaiser and, of that amount, \$8,670.92 plus a deductible of \$575.00 has been paid. But the record does not contain evidence regarding Plaintiff's total-claimed damages for non-economic harm, future medical treatment needs, lost earnings, or other elements of compensatory damages beyond the documented past medical charges.

D. Insurance Coverage and Financial Condition of Settling Defendants

All three Zazueta Defendants declared that the only liability insurance in effect at the time of the subject incident is a policy of Renter's Insurance issued by American National Property & Casualty Company, policy number 04-H-QOJ-234, which affords bodily injury coverage of \$100,000 per occurrence. Each defendant further declared that at the time of the incident, there were no other policies of insurance, including excess or umbrella coverage, with any other company that affords coverage for this incident. The insurance policy declaration page confirms Named Insured(s) and Mailing Address: Zazueta, Darrell; Zazueta, Starr; 5615 Blossom Gardens Circle, Apt. 5615, San Jose, CA 95123-6162, with policy term 12-06-2022 to 12-06-2023 Renewal and Personal Liability (Each Occurrence): \$100,000.

Darrell P. Zazueta's Financial Condition: Darrell declared that from approximately March 2024 to the present, he has resided at 823 Locust Street, San Jose, CA 95110, where he is a tenant and pays monthly rent of \$3,600.00. He stated that he does not own or have any equity in any real property in the State of California or anywhere in the United States, and is not named on any deed or title to any real property. And that he is not the beneficiary of any trust or estate and am not expecting to be named in any will or last testament as a beneficiary.

Darrell is employed as a Sales Manager by SFO Representatives, having been employed since September 2013. He is a full-time employee working forty hours per week and his gross monthly income is \$6,000.00. His annual income, before taxes, does not exceed \$75,000.00.

Darrell further asserts that, despite his income, his checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. His monetary savings do not exceed \$1,000.00. And he does not own any stocks, bonds, mutual funds, or any form of financial investments.

Starr Mendoza-Zazueta's Financial Condition: Starr declared that from approximately March 2024 to the present, she has resided at 823 Locust Street, San Jose, CA 95110, where she is a tenant and pays monthly rent of \$0.00. She does not own or have any equity in any real property in the State of California or anywhere in the United States. She is currently unemployed. She last worked in August 2024 as a cashier and earned approximately \$1,500.00 per month. Her checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. Her monetary savings do not exceed \$1,000.00.

Rose Linda Mendoza-Zazueta's Financial Condition: Rose declared that for approximately 10 years, she has resided at 519 Vineyard Street in San Jose, California, where she is a tenant and pays monthly rent of \$750.00. She does not own or have any equity in any real property in the State of California or anywhere in the United States. She is unemployed. She last worked in April 2025 as a housekeeper and earned approximately \$4,000.00 per month. Her checking account balance at the end of the month after withdrawals for necessities for living expenses is under \$1,000.00 or at times in the negative. Her monetary savings do not exceed \$1,000.00.

The Court finds the Declaration of each of the Zazueta Defendants to be credible and well supported.

III. LEGAL STANDARD

California Code of Civil Procedure section 877.6 establishes the procedure for determining whether a settlement has been made in good faith. (Code Civ. Proc., § 877.6, subd. (c).) A determination that a settlement was made in good faith bars any other joint tortfeasor from any further claims against the settling tortfeasor for equitable comparative contribution, or partial or comparative indemnity, based on comparative negligence or comparative fault. (*Id.*)

The standard governing good faith determinations is set forth in well-known case of *Tech-Bilt, Inc. v. Woodward-Clyde & Associates* (1985) 38 Cal.3d 488. Under *Tech-Bilt*, the Court evaluates whether the settlement amount falls within the reasonable range of the settling tortfeasor's proportionate share of comparative liability for the plaintiff's injuries. (*Id.*) The court considers a rough approximation of the plaintiff's total recovery and the settlor's proportionate liability, the amount paid in settlement, the allocation of settlement proceeds among multiple plaintiffs, a recognition that a settlor should pay less in settlement than if found liable after trial, the financial conditions and insurance policy limits of settling defendants, and the existence of collusion, fraud, or tortious conduct aimed to injure the interests of non-settling defendants. (*West v. Superior Court* (1994) 27 Cal.App.4th 1625, 1631.)

The party seeking the good faith determination bears the initial burden of making a prima facie showing of good faith. (C.C.P. § 877.6(d).) Once that showing is made, the burden shifts to the party opposing the application to demonstrate that the settlement is not in good faith. (*Id.*) The moving party must furnish sufficient information to permit a meaningful proportionality analysis and must provide a rational evidentiary basis rather than conclusory assumptions. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 165.)

The Court evaluates the settlement on the basis of information available at the time of the settlement, not with the benefit of hindsight. (*North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) The inquiry requires only a rough approximation of damages based on information available at the time of settlement, not complete proof of all damages. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

Payment of full available policy limits is strong evidence favoring good faith but is not a per se rule and does not by itself satisfy *Tech-Bilt*. *Ford Motor Co. v. Schultz* (1983) 147 Cal.App.3d 941, 943. The court must also consider the settling tortfeasor's potential indemnity liability to non-settling defendants. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 162.) The trial court's good faith determination must consider the settling tortfeasor's potential liability for indemnity to a co-tortfeasor, as well as liability to the plaintiff. (*Id.*)

IV. ANALYSIS OF THE MOTION

A. The Zazueta Defendants as of now have not carried their initial burden of establishing a prima facie showing of good faith under *Tech-Bilt*.

1. Financial Constraint and Policy Limits Exhaustion

To be sure, the Zazueta Defendants have made a substantial showing that they have exhausted their available insurance coverage and possess virtually no personal assets beyond policy limits. The undisputed evidence establishes that the \$100,000 settlement represents the full and only available insurance coverage, with no excess or umbrella policies. And each of their financial declarations demonstrate that each of the three Zazueta Defendants maintains minimal liquid assets, no real property equity, and limited income or unemployment.

This showing is significant and weighs in favor of good faith. Payment of full policy limits combined with genuine insolvency or underinsurance is a recognized mitigating factor. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

2. The Application's Deficiency: Insufficient Proportionate-Share Foundation

Despite the financial-constraint showing, the Application fails to provide the

foundational evidence necessary to evaluate whether the \$100,000 settlement falls within the reasonable range of the Zazueta Defendants' proportionate share of comparative liability. And this deficiency here means that the Zazueta Defendants have not made a prima facie showing of good faith settlement.

a. Inadequate Damages Approximation

The only concrete evidence of Plaintiff's damages before the Court now is the \$12,849.00 in documented past medical charges through Kaiser Permanente. The Application and its supporting papers provide no evidence regarding non-economic damages for pain and suffering, future medical treatment needs, lost earnings or diminished earning capacity, or permanent disability.

The Complaint alleges injuries that could result in some permanent disability and that Plaintiff incurred and will continue to incur medical and incidental expenses. The medical record shows that Plaintiff has been diagnosed with Complex Regional Pain Syndrome, Type I, and has undergone a stellate ganglion nerve block—an invasive pain-management procedure that suggests significant ongoing injury. A Complex Regional Pain Syndrome diagnosis with such treatment implies a realistic total recovery materially above the \$12,849 in documented past medical charges.

Tech-Bilt does not require exhaustive proof of damages, but it does require sufficient information for the Court to make an educated estimate of the plaintiff's total projected recovery. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.) A single figure representing past medical charges, with no developed showing on non-economic components or projected future costs, falls short of that threshold. Without a rough approximation of total damages, the Court cannot evaluate whether \$100,000 represents a reasonable proportion of the Zazueta Defendants' share.

b. Undeveloped Comparative-Fault Analysis

The Application provides no developed comparative-fault analysis. The record establishes that the Zazueta Defendants, as owners of their family dog Vader, are subject to strict liability under Civil Code section 3342. The incident occurred when one of the Zazueta Defendants allowed Vader's leash to drag on the ground in a common area and failed to restrain the dog when it attacked Plaintiff.

The Non-Settling Defendants, as property owner and property manager, contend that they are at most secondarily liable under a negligence theory and that any such liability would require proof of actual knowledge of the dog's dangerous propensities. The record does show that Vader had received a warning from Animal Control in 2021 for aggressively chasing children off-leash at the premises, and that the complex maintained policies prohibiting aggressive dog breeds and requiring leashing. Whether this evidence establishes actual *or* constructive knowledge sufficient to support independent negligence liability against the Non-Settling Defendants, and if so, what proportion of fault should be attributed to them compared to the strict-liability dog owners, raise disputes of fact that

remain unresolved—which most likely would have to be resolved by a jury unless all these parties (including *all* the settling and non-settling parties) settle this case first.¹¹

The plain fact remains that the Application, as it now stands, supplies no framework for allocating fault among the Settling and Non-Settling Defendants. For instance, *if* the Zazueta Defendants bear 80 to 100 percent of the fault, \$100,000 might represent a reasonable settlement discount given their financial constraints. But *if* they bear 40 to 60 percent, the settlement might be inadequate. *If* they bear a lesser share, it would be grossly insufficient. Without evidentiary foundation to support an allocation, the Court simply cannot tell and cannot perform the proportionate-share analysis *required* by *Tech-Bilt*.

c. Lack of Indemnity-Exposure Analysis

The Application also lacks any substantive analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants on their Cross-Complaint. The Cross-Complaint alleges that Darrell Zazueta was contractually bound by his lease to indemnify the property owner for injuries caused by the negligence of the resident or the resident's guests or invitees.

Tech-Bilt expressly requires the Court to consider the Settling Defendants' potential indemnity liability to co-defendants as part of the proportionate-share analysis. (*TSI Seismic Tenant Space, Inc. v. Superior Court* (2007) 149 Cal.App.4th 159, 162; *Fennessy v. Altoonian*, No. C098976 (Cal. Ct. App. 3rd 2025).) The Application does not address this element in any substantive way, and the Court cannot supply the analysis by inference in the Applicant's favor.

d. Conclusion that prima facie showing of good faith settlement not made under *Tech-Bilt*

The Zazueta Defendants have established genuine financial constraint and exhaustion of available insurance. These facts are relevant and weigh in favor of good faith. *But* they have not carried their initial burden as required under *Tech-Bilt* of showing that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability. Based on the current record, the Court cannot tell whether that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability because the Application lacks:

- (1) a sufficient approximation of Plaintiff's total projected damages,
- (2) a developed comparative-fault allocation, and

¹¹ As the Court will note further in the final paragraph of this Order below, the Undersigned Judge expects and encourages that a settlement among *all* the parties here would be worked out soon to resolve this unfortunate case fairly and amicably for all.

(3) analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants.

Because the Settling Defendants' required prima facie showing fails on these foundational elements, the Court need not reach the question whether the Non-Settling Defendants have carried their burden to prove the settlement is out of the ballpark. (C.C.P. § 877.6(d).)

Accordingly, the Application is **DENIED** *without prejudice*. Specifically, the Court gives the Zazueta Defendants leave to file an Amended Application for Determination of Good Faith Settlement within 60 days of today *if* they can provide an adequate evidentiary record addressing the deficiencies identified above.

As the Court is thus giving the Zazueta Defendants a full and fair chance to remedy the deficiencies identified above in an Amended Application, which will likely trigger another round of motion practice on the Determination of Good Faith Settlement as set forth in an Amended Application, the Court now in the interests of judicial efficiency and economy, and for the benefit of all parties and counsel, will address two additional important issues raised in the current Application and Opposition papers.

B. The Court Rejects the Zazueta Defendants' Argument that the Policy-Limits Payment Establishes Good-Faith *Per Se*.

The Zazueta Defendants' Application relies heavily on a theory that payment of full available policy limits, combined with their demonstrated inability to pay additional personal assets, should itself constitute good faith.

The Court respectfully rejects that per se approach. Payment of full policy limits is a substantial and relevant *Tech-Bilt* factor, particularly where accompanied by genuine financial constraint, *but* it does not establish good faith per se. (*Ford Motor Co. v. Schultz* (1983) 147 Cal.App.3d 941, 943; *North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) The dispositive inquiry remains whether the settlement falls within a reasonable range of the settling tortfeasor's proportional share. (*West v. Superior Court* (1994) 27 Cal.App.4th 1625, 1631.)

And as explained above, the deficiency in the present Application is not that the Zazueta Defendants paid their full policy limits; it is that the ballpark question itself remains unanswered and unanswerable now because the record (as now presented to the Court) lacks sufficient information on damages and comparative fault to permit that evaluation.

C. The Court Rejects the Non-Settling Defendants' Argument that Strict Liability Precludes any Settlement Discount for the Settling Defendants under *Tech-Bilt*.

On the other hand, the Non-Settling Defendants argue that the Zazueta Defendants' status as dog owners subject to Civil Code section 3342 strict liability,

combined with their alleged near-exclusive fault, renders the settlement amount grossly disproportionate to the Zazueta Defendants' share of liability and thus inconsistent with good faith.

The Court respectfully rejects that argument that strict liability per se precludes a settlement discount in the Zazueta's Defendants favor. *Tech-Bilt's* proportionate-share inquiry does not turn on whether liability is strict or fault-based; rather, it asks whether the settlement falls within a reasonable range of the settling defendants' comparative liability for the underlying injury. (*North Cnty. Contractor's Ass'n v. Touchstone Ins. Servs.* (1994) 27 Cal.App.4th 1085, 1090.) Even a defendant subject to strict liability may settle for less than full exposure if circumstances such as insolvency, underinsurance, speculative damages, or remoteness of ultimate loss justify the reduction. (*Standard Pac. of San Diego v. AA Baxter Corp.* (1986) 176 Cal.App.3d 577, 583.)

Strict liability here does not displace the *Tech-Bilt* comparative-fault inquiry; it means only that fault attribution may tilt (perhaps heavily) toward the strict-liability defendant. *If* the Zazueta Defendants do bear exclusive or near-exclusive liability, the proportionate-share analysis becomes more stringent, but a modest settlement discount may still be justified here by the genuine financial constraints and underinsurance as the Zazueta Defendants assert.

So the difficulty and problem in deciding now that this settlement is in good faith is *not* that the Zazueta Defendants are strictly liable. The difficulty is that the comparative-fault allocation between the strict-liability dog owners and the property-management defendants remains undeveloped in the current Application papers. The record does show some basis for potential independent negligence against the Non-Settling Defendants based on the 2021 Animal Control warning, their actual *or* constructive knowledge of Vader's dangerous propensities, and their failure to enforce lease provisions. And while that does not establish that the Non-Settling Defendants' negligence is comparable to the Zazueta Defendants' conduct, it also likely precludes a finding that the Non-Settling Defendants are zero-percent liable.

V. ORDER & CONCLUSION

For the reasons stated above, the Court **ORDERS** as follows:

The Application for Determination of Good Faith Settlement filed by the Settling Defendants Darrell P. Zazueta, Rose Linda Mendoza-Zazueta, and Starr Mendoza Zazueta is **DENIED without prejudice**.

This denial is based on the Zazueta Defendants' failure to carry their initial burden under *Tech-Bilt* of establishing a prima facie showing that the \$100,000 settlement falls within the reasonable range of their proportionate share of comparative liability. Specifically, the Application lacks:

- (1) a sufficient approximation of Plaintiff's total projected damages,

(2) a developed comparative-fault allocation, or

(3) an analysis of the Zazueta Defendants' potential indemnity exposure to the Non-Settling Defendants.

That said, the Zazueta Defendants have leave to file an Amended Application for Determination of Good Faith Settlement within 60 days of today *if* they can provide an adequate evidentiary record addressing the deficiencies identified above.

Final note. Before the parties embark on yet another round of motion practice on whether the Court should grant or deny the (expected) Amended Application for Determination of Good Faith Settlement, the Court expects and encourages *all* parties—including the Plaintiff, Settling Defendants, *and* Non-Settling Defendants—to meet and confer together in good faith within 30 days of today to try to reach a fair settlement among all parties. Having spent a great deal of time carefully reviewing all the papers and the record in this case, the Court has no doubt whatever that *all* the Defendants here (Settling and Non-Settling alike) sincerely regret that Plaintiff was injured in the unfortunate August 26, 2023 incident by the Zazueta's family pet at the apartment complex, would like to make Plaintiff whole, and would like to move forward peacefully and productively together in this community. And while the Court cannot order the parties to settle this case, the Court under these facts and circumstances would encourage them all to discuss doing so soon—fairly, respectfully, and in good faith.

SO ORDERED.

Date: August 19, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 12

Line 13

Line 14

Line 15